

# Redline – Newcastle Core Zoning Code

v0.1-baseline → v0.14-draft · changed passages only

**How to read this redline.** Struck-through text was removed; red text was added immediately after it. Only the TEXT of the Code is compared – natively rendered layout (district spreads, Type plates, district maps) and images are not shown here.

265 changed passage(s) shown below, each under its Section location. Unchanged text is omitted.

## Article 1 General Standards › 1. CORE ZONING CODE

### 1. CORE ZONING CODE

#### ~~A.~~**A. PURPOSE**

1. To implement the Comprehensive Plan of the Town of Newcastle.

#### Article 1 General Standards › 1. CORE ZONING CODE › a. PURPOSE

14. To allow for a range of business activity that supports the local interest in promoting Newcastle as a center for entrepreneurial activity, both in the villages and rural areas.

#### ~~B.~~**B. APPLICABILITY**

1. Unless otherwise specified, this Code is applicable throughout the Town of Newcastle as shown on the Town of Newcastle Official District Map.

## Article 1 General Standards › 2. CODE INSTRUCTIONS

### 2. CODE INSTRUCTIONS

#### ~~A.~~**A. TITLE**

1. This Code is known as the “Newcastle Core Zoning Code” and may also be cited and referred to as “the Code.”

#### ~~B.~~**B. MEANING & PURPOSE**

1. Words, phrases, and terms used in this Code are defined in Article ~~8~~**9** Definitions or within the Articles that contain standards associated with the term.
2. Words, phrases, or terms not defined in this Code must be accorded their commonly accepted meanings as defined in the most recent edition of the Webster’s Unabridged Dictionary.
3. The terms “standards,” “regulations,” and “requirements” are used to mandate a specific course of action or built outcome.

#### Article 1 General Standards › 2. CODE INSTRUCTIONS › b. MEANING & PURPOSE

8. The term “Permitted” describes the condition where a specific standard, use, or activity described in this Code is permissible. Acquisition of a permit is mandatory prior to enacting anything noted as “Permitted” in this Code.

#### ~~G.~~**C. TEXT & GRAPHICS**

1. Illustrations, graphics, pictures, and flowcharts are included in this Code to help illustrate the purpose and requirements of the text. In the case of a conflict between the text of this Code and any illustration, graphic, picture, or flowchart, the text must govern.
2. All metrics included in tables must be interpreted as text under this Code and must govern.

## **~~D.~~D. ORGANIZATIONAL STRUCTURE**

1. The burden is on the applicant for complying with all the terms of this Code.
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### **Article 1 General Standards › 3. DISTRICT MAP**

## **3. DISTRICT MAP**

### **~~A.~~A. GENERAL**

1. The boundaries of districts are applied to real property as shown on the Official District Map of the Town of Newcastle, Maine.
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### **Article 1 General Standards › 4. AUTHORITY & COMPLIANCE**

## **4. AUTHORITY & COMPLIANCE**

### **~~A.~~A. AUTHORITY**

1. This Code is adopted under the authority granted by Article 2 of the November 3, 2020 Referendum Election.

### **~~B.~~B. COMPLIANCE**

1. No real property may be occupied or used, no use of an existing building or land may change, no building or structure may be constructed, altered, expanded, or enlarged in whole or in part for any purpose except as specifically authorized by this Code.
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### **Article 1 General Standards › 4. AUTHORITY & COMPLIANCE › b. COMPLIANCE**

3. Allowance of a waiver under this Code is considered an integral part of the application of this Code and is not considered the granting of a variance, as that term is defined under Maine law.

### **~~G.~~C. RELATIONSHIP TO OTHER STANDARDS**

1. This Code does not abrogate, annul, or otherwise interfere with any easement, covenant, and/or other private agreements.
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### **Article 1 General Standards › 5. ADOPTION & EFFECT**

## **5. ADOPTION & EFFECT**

### **~~A.~~A. ADOPTION DATE**

1. This Code is adopted under the Municipal Home Rule Powers of the Maine Constitution, Article VIII-A and 30-A MRSA Chapter 141, and Chapter 187. Specific chapters of this Code are also adopted under specific statutory standards, including Mobile Home Parks, under 30-A MRSA Section 4358; Subdivisions, under 30-A MRSA Section 4404; Shoreland Standards, under 38 MRSA Sections 435449, and Floodplain Management, under PL. 90-488, the National Flood Insurance Act of 1968.

### **~~B.~~B. IN EFFECT**

1. This Code must take effect on January 1, 2021 and supersedes the Zoning Ordinance of the Town of Newcastle as enacted on March 27, 2001 and updated November 2017.

### **~~G.~~C. PREVIOUS APPROVALS**

1. All valid permits issued on or before the date of adoption of this Code will remain valid.

### **~~D.~~D. SEVERABILITY & INVALIDITY**

1. If any provision of this Code or the application of any provision to any person, partnership, corporation, or circumstance is declared unconstitutional or otherwise held invalid, the validity of the remaining

standards of this Code and their application to any other person, partnership, corporation, or circumstance must not be affected.

## ARTICLE 2 DISTRICT STANDARDS

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### Article 2 District Standards › 1. DISTRICTS

#### 1. DISTRICTS

##### ~~A.~~**A. PURPOSE**

1. To support and protect the existing character of Newcastle's villages.
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### Article 2 District Standards › 1. DISTRICTS › a. PURPOSE

3. To allow for rural areas that support working and natural landscapes.

##### ~~B.~~**B. APPLICABILITY**

1. Applies to the land, improvements, development, construction, subdivision, re-subdivision, structures, buildings, and lots within each core districts or special district.
2. Core Districts and Special Districts are assigned on the District Map. Standards related to each district are located in Article 2 District Standards, Article ~~3~~**4** Site Standards, Article ~~4~~**5** Building Standards, Article ~~5~~**6** Design Standards, and Article ~~6~~**7** Use Standards.
3. Properties that are designated on the District Map as having Special Requirements must comply with the Special Requirements standards found in this Article.

#### 2. LOTS

##### ~~A.~~**A. PURPOSE**

1. To provide a clear and flexible system for creating lots that reflect the character of a neighborhood.

##### ~~B.~~**B. APPLICABILITY**

1. Applies to all projects that create new lots with actual or virtual lot lines.

##### ~~C.~~**C. GENERAL**

1. All newly created lots must about a ~~Public~~**Street or Road** or of ~~Private~~**a Type defined in Article 3 Section 2 (Street & Road which Types).** ~~conforms~~**The with** ~~Street or Road must conform to the Newcastle standards~~**Driveway, of Road, Article and Entrance Ordinance.**
    - a. Newly created lots shall retain the District designation of the original lot.
    - b. New insular lots are prohibited, unless created with a minimum deeded 24 ft wide right-of-way to a ~~Public~~**Street** or ~~Private~~**Road** ~~as defined in Article 3.~~
    - i. Newly created insular lots wholly held in a non-public conservation easement may reduce the right-of-way with access standard to 10 ft for non-vehicular access. Subsequent removal of the lot from the conservation easement shall create a legal non-conformity.
    - c. New flag lots are prohibited.
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### Article 2 District Standards › 2. LOTS › c. GENERAL

4. Lots must be platted as follows:
  - a. The front lot line must be located along the primary road, or water body.
  - b. For newly created corner lots or through lots that about two roads, the primary frontage shall be along the ~~Public~~**Street** or ~~Private~~**Road** of greatest ~~the significance.~~**highest Type per Article 3 Section 2**

hierarchy (Streets take precedence over Roads; within each family, Types with lower codes – e.g., S1 over S2 – take precedence).

#### **D. NONCONFORMING LOTS**

1. Nonconforming lots may not be further subdivided.
2. A lot that is nonconforming due to insufficient lot width or insufficient lot area may be developed as long as any applicable setback standards are met.

#### **E. VIRTUAL LOTS**

1. Lots of record may be divided by virtual lot lines to create virtual lots.

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### **Article 2 District Standards › 2. LOTS › e. VIRTUAL LOTS**

- c. Virtual lots shall conform to all applicable Subdivision regulations.

#### **F. FRONTAGE**

1. Lots must meet the building setback, windows and doors, parking placement, and all other standards of the code related to frontages.

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### **Article 2 District Standards › 3. SETBACKS**

#### **3. SETBACKS**

##### **A. PURPOSE**

1. To enable and require building placement along a street that supports and reinforces the character of each District and to produce the desired character.

##### **B. APPLICABILITY**

1. Setback standards apply to Primary Buildings and Accessory Buildings. Massing Components and Additional Structures have unique setback standards.

##### **C. GENERAL**

1. Primary building setbacks are provided on District pages.
2. Accessory building setbacks are provided on District pages.
3. All primary buildings must comply with required front, side, and rear setback ranges.
4. Deviations to setbacks, including building articulation and encroachments, are specified in Article 4 Building Standards.
5. Standards related to setbacks for components are specified in Article 4 Building Components.
6. Deviations to setbacks, including building articulation and encroachments, are specified in Article 5 Building Standards.
7. Standards related to setbacks for components are specified in Article 5 Building Components.
8. Where a lot has more than one side, front, or rear lot line, the setback must be observed in each instance.
9. When two lots of different districts share a lot line, the side setback standard of the less restrictive district may be used along the shared lot line.

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### **Article 2 District Standards › 4. SPECIAL MAP REQUIREMENTS**

#### **4. SPECIAL MAP REQUIREMENTS**

##### **A. PURPOSE**

1. To provide opportunities for standards that help reinforce or yield a specific character or condition.

##### **B. APPLICABILITY**

1. Shopfront street special requirements apply to all lots that abut roads designated as shopfront streets shown on the District Map.

2. Scenic view requirements apply to all lots that intersect with a scenic view designation.

#### **~~C.~~C. REQUIRED SHOPFRONT STREETS**

1. Lots subject to required shopfronts as shown on the District Map must comply with shopfront standards in Article ~~4-9~~**5.9** Shopfronts.

#### **~~D.~~D. REQUIRED SCENIC VIEWS**

1. Lots subject to required scenic views must be reviewed by the Planning Board and are subject to the standards below.

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### **Article 2 District Standards › 5. CIVIC DISTRICT**

## **5. CIVIC DISTRICT**

#### **~~A.~~A. PURPOSE**

1. To define and display municipally owned land on the District Map.

#### **~~B.~~B. APPLICABILITY**

1. Lots designated on the Zoning Map as SD-Civic are municipally owned and not subject to the standards of this Ordinance.

## **ARTICLE 3 SITE STANDARDS**

## **ARTICLE 3 STREETS, ROADS & DRIVEWAYS**

### **1. GENERAL**

#### **A. PURPOSE**

1. To establish a context-based classification of streets, roads, and driveways calibrated to the Districts of this Code.
2. To require that new streets, roads, and driveways are designed in a manner that supports and reinforces the character of the District in which they are located.
3. To provide a method for classifying existing streets and roads into the Street/Road Types defined herein.
4. To resolve design conflicts between vehicular and pedestrian movement in favor of the pedestrian within urban Districts, and in favor of the vehicle within rural Districts.
5. To distinguish between the form and character of a street or road (regulated by this Article) and its statutory ownership and maintenance status (governed by Title 23 of the Maine Revised Statutes).
6. To absorb, calibrate, and supersede the Newcastle Road, Driveway, and Entrance Ordinance adopted November 3, 2020, which is repealed concurrent with the adoption of this Article.

#### **B. APPLICABILITY**

1. Unless otherwise specified, this Article is applicable to all streets, roads, and driveways throughout the Town of Newcastle.
2. Applies to each new street, road, driveway, and entrance that connects to a public way, and to the alteration, enlargement, reconstruction, or discontinuance of an existing street, road, driveway, or entrance on or after the effective date of this Article.
3. Applies to the classification of existing streets and roads in accordance with Section 5 of this Article.
4. If a permit or approval is required under this Article, no earth moving or construction may occur prior to obtaining that permit or approval.

## **C. AUTHORITY**

1. This Article is adopted under the Municipal Home Rule Powers of the Maine Constitution, Article VIII-A and 30-A MRSA Chapter 141, and Chapter 187, and under the authority granted by the Town Meeting that ratified this amendment.

## **D. COMPLIANCE**

1. No street, road, driveway, entrance, or other improvement within the limits of the right-of-way for any public or approved private road or street may be constructed, altered, or relocated except in accordance with this Article.
2. This Article allows waivers from its standards as explicitly authorized within this Article if the Permitting Authority determines that:
  - a. Allowance of the waiver is consistent with the purpose of this Article; and
  - b. The waiver does not exceed the allowed metric variations or qualitative criteria described in the section where the waiver is authorized.
3. Allowance of a waiver under this Article is considered an integral part of the application of this Article and is not considered the granting of a variance, as that term is defined under Maine law.

## **E. RELATIONSHIP TO OTHER STANDARDS**

1. This Article does not abrogate, annul, or otherwise interfere with any easement, covenant, or other private agreement.
2. Where the standards of this Article impose a greater restriction than required by other ordinances, regulations, resolutions, rules, easements, covenants, or agreements, the provision of this Article must apply.
3. The standards of this Article must take precedence over those of other codes, ordinances, regulations, and standards that may be in conflict with this Article, except as provided in Section 12 with respect to state-aid roads.
4. All development activity must comply with relevant Federal and State law and regulations. Where there is a conflict between this Article and the standards of a Federal or State law, Federal or State law supersedes the standards of this Article.

# **2. STREET & ROAD TYPES**

## **A. PURPOSE**

1. To establish a system of named Street and Road Types whose standards reinforce the character of each District.
2. To enable a single classification — the Type — to serve both as a design specification for new construction and as a designation for existing streets and roads.
3. To order the public realm on a continuum from most urban (Main Street) to most rural (Rural Road and Rural Lane), with Driveway designated as the smallest form of vehicular access.

## **B. APPLICABILITY**

1. Every street and road within the Town of Newcastle is assigned one Type from the system in this Section, in accordance with Section 5 (Classification of Existing Streets & Roads) or Section 6 (New Streets & Roads).
2. Every Driveway is regulated as a Driveway under Section 7, calibrated by the District in which the driveway is located.

## **C. GENERAL**

1. The Street/Road Types are organized in two families:
  - a. The **Street family** (S1 through S5) contains Types whose character emphasizes pedestrian comfort, defined frontages, and lower design speeds. Street Types are intended for the more urban Districts.

- b. The **Road family** (R1 through R5) contains Types whose character emphasizes vehicular movement, working landscapes, and higher design speeds. Road Types are intended for the more rural Districts and for state-aid highway corridors.
- 2. The Driveway (D) is a third category, distinct from the Street and Road families, and provides private access from a Street or Road to a single lot.
- 3. Within Types S1 through S5 and R1 through R5, pedestrian comfort considerations are weighted as follows: in Types S1 through S4, pedestrian comfort is a primary consideration. In Types S5 (Alley), R1, R2, and R3, pedestrian comfort is a secondary consideration but is not eliminated. In Types R4 and R5, vehicular movement is the primary consideration consistent with Maine Department of Transportation classification of the corridor.
- 4. The full design standards for each Type are stated on that Type's page, which follows in this Section. The sight-distance standards of Section 8 and the construction specifications of Section 11 are referenced on each Type's page and stated in full in those Sections.
- 5. A full page for each numbered Type (S1 through S5 and R1 through R5) follows in this Section. Each Type page states that Type's description, purpose, applicable standards, target Districts, character, and design standards, and includes an illustrative cross-section showing the representative arrangement and typical widths of the Type's right-of-way components. The cross-section illustration is representative; the design standards stated on the page govern. No Type page is provided for the Driveway (D), which is not a Street or Road Type and is regulated under Section 7.

#### **D. DRIVEWAY (D)**

- 1. **Description.** A Driveway is a private vehicular access way from a Street or Road to the interior of a single lot, including access to homes, parking lots, or loading docks. A Driveway is not a Street or Road and is not subject to the construction specifications of Section 11.
- 2. **Applicability.** A Driveway provides access to no more than two single family dwellings or one two-family dwelling on a single lot, except where a shared driveway is authorized under Section 7.B.
- 3. **Calibration.** Driveway standards in Section 7 are calibrated by the District in which the driveway is located.

### **3. STREET & ROAD STANDARDS**

#### **A. PURPOSE**

- 1. To state the rules of general application that govern the design standards carried on each Type's page in Section 2 – how ranges are read, how "per MaineDOT" entries operate, and the basis for the right-of-way widths and maximum grades.

#### **B. APPLICABILITY**

- 1. The design standards stated on the Type pages in Section 2, together with the rules of general application in this Section, apply to the design and construction of new streets and roads under Section 6, and to the modification of existing streets and roads under Section 14.
- 2. Sight distance standards (Section 8) and construction specifications (Section 11) are referenced on each Type's page but stated in full in their respective Sections.

#### **C. GENERAL**

- 1. Each Type's design standards are stated on that Type's page in Section 2 in two columns. The **Type standard** column states the range or choice of options the Type authorizes. The **Build to** column states the single value to be constructed – the **Build-To Standard** defined in Section 3.C.2. The rules in this Subsection govern how the two columns are read and applied.
- 2. The **Build-To Standard** is the value stated in the **Build to** column on the Type's page in Section 2. It is the value the applicant constructs, subject to alteration only as Section 3.C.4 provides. Where the Type standard is a single value, the Build-To Standard restates it. Where the Type standard is a range (for example, "8–12 ft") or a choice of sides, the Build-To Standard is drawn from it as follows:

- a. for the pedestrian and landscape components — sidewalk width, planting strip, street trees, and on-street parking — the Build-To Standard is the fuller value, and within the Street family (Types S1 through S5) these components are built; and
  - b. for the traffic-calming dimensions — travel-lane width and curb-return radius — the Build-To Standard is the lower value.
3. Where “per MaineDOT” is indicated, the Maine Department of Transportation’s current geometric design standards for the applicable functional classification apply to the cartway. The Town retains authority over the frontage zone, building setbacks, sidewalks, and access management as set forth in this Article and in Article 2.
  4. The Build-To Standard, together with the components stated for a Type, is the configuration to be built. It may be altered only as this Subsection provides:
    - a. **Reducing a pedestrian or landscape component.** An applicant may build a sidewalk, planting strip, street-tree provision, or on-street parking narrower than its Build-To Standard, or omit such a component, only upon a written demonstration, submitted with the application, that (i) every safety-critical standard of this Article is met, and (ii) the reduced configuration better serves the purpose of the assigned Type in its District context under Sections 1 and 2.C. A component required under Section 3.F may not be reduced or omitted except as that Section provides.
    - b. **Widening a traffic-calming dimension.** The travel-lane width and the curb-return radius build to the lower value because a narrower lane and a tighter corner slow traffic and shorten pedestrian crossings. They may be built wider than their Build-To Standard where necessary to accommodate truck, bus, or emergency-vehicle movements; they shall not be built narrower.
    - c. **Safety-critical standards are fixed.** The safety-critical standards — the traveled-way width, the sight distances of Table 3.2 and Section 8, the intersection geometry of Section 9, and the maximum grade within 75 ft of an intersection (Section 9) — are fixed for every Type and may not be reduced under this Subsection.
    - d. **Building below a minimum.** A departure under paragraph a alters the Build-To Standard within the Type’s stated range and is processed as part of the application; it is not a waiver. To build below a stated minimum of the assigned Type, a waiver under Section 13.H is required.
  5. For a Rural Lane (R3) whose traveled way is 15 ft or narrower, passing pull-outs sufficient for two vehicles to pass, and for the deployment of fire apparatus, shall be provided at intervals of no more than 300 ft.

#### **D. BASIS FOR RIGHT-OF-WAY WIDTHS**

1. The right-of-way widths stated on the Type pages in Section 2 are calibrated to the cross-section each Type is expected to carry — traveled way, on-street parking, planting strips, sidewalks, shoulders, and drainage — together with a margin for snow storage, dry utilities, and grading. They are not a single uniform width applied without regard to context.
2. The widths remain rooted in the traditional New England rod (1 rod = 16.5 ft): a Main Street (S1) at 66 ft is four rods, the historic town-road width of 49.5 ft is three rods, and a Rural Lane (R3) and other narrow ways descend to the two-rod (33 ft) minimum. The ranges in this Section allow a Type to default to less than the historic three-rod width where its cross-section does not require it.
3. No Maine statute prescribes a minimum right-of-way width. 30-A MRSA §4404 requires only that a subdivision not cause unreasonable highway or public-road congestion or unsafe conditions. These widths are set under the Town’s home-rule authority (Section 1.C), and the safety-critical dimensions — traveled way width, sight distance (Section 8), and intersection geometry (Section 9) — are fixed independently of the right-of-way range.
4. These widths implement the 2018 Newcastle Comprehensive Plan, which found the Town’s street standards “uniform” and directed that “new zoning will incorporate a range of street types and standards to accommodate local conditions and desired development goals” (*Streets & Roads: Road Standards = Land Use Goals*, p. 46). The calibrated rights-of-way further the Plan’s call for “right-sized infrastructure” that



reduces the Town's exposure to future road costs (*Less road*, p. 43), its observation that allowing "individual streets to become narrower ... slows traffic and increases vehicular and pedestrian safety" (*Connectivity*, p. 44), and its policies for a walkable, pedestrian-scaled Main Street and village center (*Claim Main Street*, pp. 73–74) and for the protection of rural character (*Natural & Built Landscape*, p. 116).

## E. BASIS FOR MAXIMUM GRADES

1. The maximum grades stated on the Type pages in Section 2 are calibrated to each Type's context rather than to its ownership. The Newcastle Road, Driveway, and Entrance Ordinance, repealed concurrent with this Article, set a single maximum grade by ownership — 8% for a Public Road and 10% for a Private Road (former Table 2.2) — without regard to whether the way served a pedestrian-scaled village street or a rural conduit. This Article replaces that ownership-based figure with grades calibrated to the rural-to-urban transect.
2. The urban Street Types are held at or below the former Public-Road maximum: a Main Street (S1) is capped at 6% and a Village or Neighborhood Street (S2, S3) at 8%, in the interest of pedestrian comfort, accessibility, on-street parking, and winter walkability. The rural Road Types tolerate steeper grades — a Connector Road (R1) at 10% and a Rural Road or Rural Lane (R2, R3) at 12% — because they follow natural topography in low-density terrain, carry little or no pedestrian traffic, and serve the fewest lots. The repealed Ordinance itself directed that "road grades shall conform as closely as possible to the original topography"; permitting a modestly steeper rural grade honors that instruction and reduces the cut, fill, and earthwork imposed on the rural Districts (D1, D2), where this Code prioritizes minimal alteration of the landscape.
3. The steeper rural maximums relax no safety-critical standard. The 2% maximum grade within 75 ft of an intersection (Section 9), the requirement that all changes in grade be connected by vertical curves providing the minimum stopping sight distance of Table 3.2 (Section 10), and the sight-distance and intersection-geometry standards generally, are fixed independently of a Type's maximum grade and apply to every Type.
4. Grades for the Highway Commercial (R4) and Rural Highway (R5) cartways defer to MaineDOT design standards under Section 12, consistent with the status of US Route 1 as a State Highway.

## F. REQUIRED COMPONENTS BY CONTEXT

1. This Subsection states the components that shall be provided on a Street or Road regardless of whether a component's dimension is a Build-To Standard (Section 3.C.2) or a minimum. These requirements are administered by the Code Enforcement Officer on permits the Officer issues under Section 13.C, and by the Planning Board on Subdivision and Master Plan review.
2. **Sidewalk.** A sidewalk shall be provided:
  - a. on both sides of a Street in D5 Village Business and D6 Town Center;
  - b. on at least one side of a Street or Road where any part of the frontage lies within ¼ mile, measured along the public way, of a school, the Town Office, the library, the post office, a public park or public landing, or a place of public assembly;
  - c. on at least one side where the segment connects to an existing sidewalk; and
  - d. on at least one side of a new Street that will serve more than [12] dwelling units.
3. **On-street parking.** On-street parking shall be provided on at least one side where the abutting frontage permits a ground-floor retail, restaurant, or personal-service use under Articles 2 and 7.
4. **Planting strip and street trees.** A planting strip with street trees shall be provided on any segment on which a sidewalk is required under Section 3.F.2, unless the Code Enforcement Officer finds in writing that a planting strip is infeasible because of a utility conflict, insufficient right-of-way remaining after the safety-critical widths are met, or ledge.
5. **Connectivity.** A new Street shall connect to any stubbed street abutting the parcel and shall provide a stub to each abutting developable parcel where a future through-connection is feasible.

6. **Trail connection.** Where an adopted Town trail, path, or sidewalk plan shows a connection across or along the parcel, the Street or Road shall accommodate that connection.
7. **Road-family limit.** Types R1 through R5 are exempt from Sections 3.F.2 through 3.F.4 except where the segment abuts D5 or D6 frontage.

## 4. OWNERSHIP CATEGORIES

### A. PURPOSE

1. To distinguish the form and character of a street or road, regulated as a Type under this Article, from its statutory ownership and maintenance status.
2. To recognize the four ownership categories that exist under Maine law and Town practice, and to acknowledge that any Street or Road Type may, in principle, exist under any of these categories.

### B. APPLICABILITY

1. Every street and road within the Town of Newcastle is assigned, in addition to its Type, one Ownership Category from this Section.
2. The Ownership Category of a street or road is recorded on the District Map alongside its Type.

### C. CATEGORIES

1. **Town Way.** A street or road formally accepted by the Town under 23 MRSA §3022 by vote at Town Meeting. The Town maintains a Town Way and bears responsibility for repairs.
2. **Public Easement.** A street or road over which the public holds an easement under 23 MRSA §3021, sometimes referred to historically as a “private way.” The public has the right of access but the Town does not bear maintenance responsibility.
3. **Private Road.** A street or road in fully private ownership over which no public access right exists. Maintenance is the responsibility of the private owner or association.
4. **State Highway.** A street or road owned and maintained by the State of Maine through the Maine Department of Transportation. US Route 1 within Newcastle is a State Highway. State Highways are subject to the coordination protocol in Section 12.

### D. RELATIONSHIP TO TYPE

1. The Type of a street or road describes its form, character, and design standards. The Ownership Category describes its statutory ownership and maintenance status. The two designations are independent: a Main Street (S1) may be a Town Way, a Public Easement, or a State Highway; a Rural Road (R2) may be a Town Way or a Private Road.
2. Where the standards of this Article conflict with the standards or practices applicable to a particular Ownership Category – for example, with MaineDOT design standards for a State Highway, or with the terms of a Public Easement instrument – the provisions of Section 12 (Coordination with MaineDOT) and Section 4.E (below) apply.

### E. PROCESS FOR CHANGING OWNERSHIP

1. The acceptance of a Private Road or Public Easement as a Town Way is a Town Meeting matter and is processed under Article 8 §20 Land Conveyance.
2. Discontinuance of a Town Way is processed under 23 MRSA §3026-A and Article 8 §27 Planning Board.
3. Changes in Ownership Category do not by themselves change the Type of a street or road. The Type is set under Section 5 or Section 6 and is reviewed only under Section 14.B (Reclassification).

## 5. CLASSIFICATION OF EXISTING STREETS & ROADS

### A. PURPOSE

1. To assign, at adoption of this Article, a Type and an Ownership Category to every existing street and road within the Town of Newcastle.
2. To provide a process for reviewing and updating the classification of a street or road over time.

## B. APPLICABILITY

1. Applies to every named street and road segment within the Town of Newcastle at the effective date of this Article.
2. A street or road segment is defined as the length of a named street or road between two principal intersections.

## C. INVENTORY OF EXISTING STREETS AND ROADS

1. The Town shall maintain an Inventory of Existing Streets and Roads (Exhibit 3.1) that, for every street and road segment in Newcastle, assigns the segment a Street/Road Type and records descriptive information about the segment.
2. **Classification (binding).** For each segment – identified by its name and termini – the Inventory assigns a Street/Road Type. The Type assignment is the regulatory classification of the segment and is adopted as part of this Code. The standards applicable to a segment are the standards of its assigned Type (Section 2), together with the rules of general application in Section 3. A Type assignment may be changed only under Section 5.E (Reclassification).
3. **Recorded information (reference).** The Inventory also records the following for each segment, for reference and administration. This information is approximate, does not itself establish or limit any standard or dimension, and may be updated by the Town to reflect current conditions; where a recorded entry conflicts with the actual field condition or with a controlling standard of this Code, the actual condition or the controlling standard governs.
  - a. Ownership Category, as determined under Section 4.
  - b. Approximate right-of-way width.
  - c. Approximate traveled way width.
  - d. Adjacent District(s).
  - e. MaineDOT functional classification, where the segment is a state-aid road.
  - f. Notes on nonconformity, where the segment does not currently meet the standards of its assigned Type (Section 14).
4. **Street & Road Type Map.** The Street & Road Type Map (Exhibit 3.2) illustrates the Type assigned to each segment. It is generated from the Inventory and is provided for convenience; where the Map and the Inventory differ, the Inventory governs.
5. The initial Inventory is adopted concurrently with this Article. A change to a segment's assigned Type is processed under Section 5.E (Reclassification); recorded information under paragraph 3 may be updated by the Town without amendment of this Code.

## D. CLASSIFICATION RUBRIC

1. The Type assigned to an existing segment is determined by applying the following rubric, in the order listed:
  - a. **Adjacent District test.** A segment whose abutting parcels are predominantly in a given District is provisionally classified as the Type targeted for that District in Section 2 (see also the District-Type cross-reference in Table 3.4).
  - b. **Built character test.** Where the abutting built form indicates a character at variance with the Adjacent District test – for example, a segment within D2 whose abutting parcels are uniformly rural in character – the Type is adjusted to match the built character.
  - c. **Right-of-way and cartway test.** Where the existing right-of-way and cartway widths preclude one Type but are consistent with another, the Type is set to the closest match permitted by physical constraints, and the segment is recorded as nonconforming under Section 14.
  - d. **MaineDOT functional class test.** A segment carrying a MaineDOT functional classification of Principal Arterial or Minor Arterial is presumed to be R4 (Highway Commercial) or R5 (Rural Highway) depending on its abutting District. A Collector classification is presumed to be R1 (Connector Road). A Local classification is presumed to follow the Adjacent District test.

- e. **Tie-breaker.** Where the above tests produce conflicting indications, the Planning Board determines the Type after a public hearing, considering the long-term character intent of the abutting District(s).

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TABLE 3.4 DEFAULT TYPE BY DISTRICT (CLASSIFICATION GUIDE)

| District                    | Default Street/Road Type(s)                                                                   |
|-----------------------------|-----------------------------------------------------------------------------------------------|
| D1 Rural                    | R2 Rural Road; R3 Rural Lane on low-volume segments; R1 Connector Road on transition segments |
| D2 Neighborhood Residential | S3 Neighborhood Street; S4 Lane on mid-block segments; R1 Connector Road on edge segments     |
| D3 Neighborhood Business    | S3 Neighborhood Street; S2 Village Street on center segments                                  |
| D4 Village Residential      | S3 Neighborhood Street; S4 Lane on mid-block segments; S2 Village Street on center segments   |
| D5 Village Business         | S2 Village Street; S1 Main Street on designated segments; S4 Lane internal to blocks          |
| D6 Town Center              | S1 Main Street; S4 Lane and S5 Alley internal to blocks                                       |
| SD-Historic                 | S2 Village Street center; S3 Neighborhood Street outside center                               |
| SD-Conservation             | R2 Rural Road; R3 Rural Lane on low-volume segments                                           |
| SD-Highway Commercial       | R4 Highway Commercial                                                                         |
| SD-Rural Highway            | R5 Rural Highway                                                                              |
| SD-Campus                   | S3 Neighborhood Street; S4 Lane and S5 Alley internal                                         |
| SD-Marine                   | S3 Neighborhood Street; R1 Connector Road on access segments                                  |
| SD-Fabrication              | S3 Neighborhood Street; S5 Alley internal                                                     |
| SD-Civic                    | Type follows adjacent District                                                                |

## E. RECLASSIFICATION

- The Type assigned to an existing street or road segment may be changed only by:
  - Amendment of the segment's Type assignment in the Inventory (Section 5.C) under Article 8 §21 (Zoning Amendment), processed as a Town Meeting matter; or
  - Reclassification under this subsection where, in connection with a proposed alteration or improvement, the abutting District has been amended or the built character has demonstrably changed such that the current Type no longer reflects either.
- A reclassification petition may be submitted by:
  - The Planning Board.
  - The Code Enforcement Officer.
  - The Road Commissioner.
  - A property owner whose lot abuts the segment.
  - 10% of the number of voters who voted in the Town of Newcastle in the last gubernatorial election.
- Reclassification petitions are reviewed by the Planning Board at a public hearing with abutter notice under Article 8 §5. The Planning Board makes a written recommendation to the Board of Selectmen, who may place the petition on the warrant of the next Town Meeting.

## 6. NEW STREETS & ROADS

### A. PURPOSE

- To establish the process and standards for the design and construction of new streets and roads within the Town of Newcastle.

### B. APPLICABILITY

- Applies to:

- a. The construction of any new street or road within the Town.
  - b. Substantial reconstruction of an existing street or road, where the reconstruction alters the cartway width, right-of-way width, or fundamental design speed.
2. Does not apply to:
- a. General maintenance of an existing street or road, including patching, resealing, restriping, and shoulder reshaping that does not alter the standards listed in Section 6.B.1.b.
  - b. Driveway construction or alteration, which is regulated under Section 7.

### **C. TYPE ASSIGNMENT AT TIME OF DESIGN**

- 1. The Type of a new street or road must be assigned at the time of design, before construction drawings are prepared.
- 2. The Type assignment is made by the applicant in consultation with the Code Enforcement Officer and Road Commissioner, based on the abutting District, the intended built character, and the Default Type by District guide in Table 3.4.
- 3. Where the new street or road serves a Subdivision, the Type assignment is reviewed and approved by the Planning Board as part of the Subdivision Plan under Article 8 §12.
- 4. Where the new street or road is a state-aid road, MaineDOT coordination is required under Section 12 prior to Type assignment.

### **D. DETERMINATION OF COMPONENTS AND WIDTHS**

- 1. In approving a new Street or Road, the Planning Board may require components and widths drawn from within the assigned Type's stated ranges and options in Section 2 in order to serve one or more of the following objectives:
  - a. pedestrian safety and comfort consistent with Section 2.C.3;
  - b. continuity of the street, sidewalk, and block network;
  - c. the character of the abutting District and the adopted Comprehensive Plan;
  - d. stormwater management and the establishment of tree canopy;
  - e. emergency-vehicle access; and
  - f. the supply of on-street parking.
- 2. A requirement imposed under Section 6.D.1 shall be supported by a written finding identifying the objective it serves and the basis for it, made as part of the Subdivision findings under Article 8 §12.F or the Master Plan findings under Article 8 §13.E.
- 3. The Planning Board may not require a configuration that exceeds the assigned Type. A fuller cross-section than the assigned Type provides is available only by reclassifying the segment to a higher Type under Section 5.E.
- 4. In Types R1 through R3, the Planning Board shall weigh the preservation of rural character and the minimization of land alteration against the objectives in Section 6.D.1.

### **E. DESIGN STANDARDS**

- 1. The design of a new street or road must conform to the design standards stated for the assigned Type on that Type's page in Section 2, to the rules of general application in Section 3, and to the construction specifications of Section 11, except as modified under Section 12 for state-aid roads.
- 2. Engineering plans must be prepared and stamped by a Maine-licensed civil engineer.
- 3. Plans must be reviewed and approved by the Road Commissioner prior to issuance of a Zoning Permit for street or road construction.

### **F. CONSTRUCTION AND INSPECTION**

- 1. Construction must be supervised by a Maine-licensed civil engineer contracted by the Town at the expense of the applicant.
- 2. The Road Commissioner inspects required improvements during and at the completion of construction.

3. Upon completion, the supervising engineer certifies in writing to the Road Commissioner that all required improvements have been constructed in accordance with the approved plans.

## **G. ACCEPTANCE AS A TOWN WAY**

1. A new street or road constructed under this Section is presumed to remain a Private Road unless and until it is formally accepted as a Town Way by vote at Town Meeting under 23 MRSA §3022.
2. The cost of any improvements required to bring the street or road up to current Town Way acceptance standards shall not be borne by the Town.
3. The Town is not obligated to accept any privately constructed street or road as a Town Way.

## **7. DRIVEWAYS**

### **A. PURPOSE**

1. To provide standards for vehicular access to lots.
2. To preserve the safe transition of vehicles between a Driveway and the abutting Street or Road, calibrated by the District.

### **B. APPLICABILITY**

1. Applies to new Driveways and to the relocation of existing Driveways.
2. Does not apply to the general maintenance of an existing Driveway, including patching, resealing, and grading.

### **C. GENERAL**

1. A Driveway provides access only from a Street or Road of a Type defined in Section 2 to the interior of a single lot.
2. A Residential Companion use may share a Driveway with the primary dwelling unit on the same lot.
3. Abutting lots may share a Driveway provided that an access easement exists between all owners and the shared Driveway complies with the entrance standards in Section 8.
4. A Driveway may pass through required front, side, and rear setbacks to access permitted parking locations.
5. One Driveway is permitted per building lot or virtual lot.
6. In D1 Rural and D2 Neighborhood Residential, more than one Driveway per lot is permitted, subject to the entrance spacing standards in Section 8.

### **D. DESIGN**

1. All Driveways must comply with the entrance standards of Section 8 and the intersection standards of Section 9.
2. Driveways must be constructed to prevent water run-off onto the adjacent Street or Road.
  - a. In Districts D1, D2, and rural Special Districts, a Driveway may be sloped no greater than 3% above or below the adjacent cartway for the first 20 ft of the Driveway.
  - b. In Districts D3 through D6 and in urban Special Districts, the first 10 ft of a Driveway must match the slope and grade of the abutting sidewalk or, where no sidewalk is present, the abutting shoulder.
3. Where the Permitting Authority determines that a Driveway culvert is necessary, the applicant shall bear the burden of the cost for the culvert installation, which shall be constructed to the standards of Section 10.

### **E. CALIBRATION BY DISTRICT**

1. Driveway maximum width is calibrated by District as follows:
  - a. D1, D2, R1/R2/R3 corridors: 24 ft max
  - b. D3, D4, S3 corridors: 20 ft max
  - c. D5, D6, S1/S2 corridors: 12 ft max within the frontage zone (may flare beyond the frontage zone)
  - d. SD-Highway Commercial, SD-Rural Highway: 30 ft max with MaineDOT entrance permit

## **8. ENTRANCES**

### **A. PURPOSE**

1. To provide standards for the safe transition of vehicles at the point of intersection where Driveways, parking lots, and access ways meet a Street or Road.

### **B. APPLICABILITY**

1. Applies to any new access to a lot from a Street or Road, whether utilizing a Driveway or a parking lot.

### **C. GENERAL**

1. An entrance onto a State Highway (R4 or R5) must be approved by the Maine Department of Transportation in accordance with 23 MRSA §704. A copy of MaineDOT approval shall be submitted to the Permitting Authority at the time of application review.
2. Entrance standards apply to the first 20 ft of the Driveway, road, or parking lot that intersects the Street or Road.

### **D. DESIGN**

1. All entrances must be designed and constructed in accordance with the latest Maine Department of Transportation's Manual for Standard Specifications.
2. No part of the entrance shall extend beyond the property lot frontage.
3. Entrance side slopes and banks shall not be steeper than a horizontal to vertical ratio of 2:1.

### **E. INTERSECTION ANGLE**

1. Entrances shall intersect the adjacent Street or Road at a horizontal angle of 90 degrees.
  - a. Proposed horizontal angles of intersection less than 90 and greater than 75 degrees may be permitted by Special Permit.
  - b. Angles of intersection less than 75 degrees shall not be permitted.

### **F. LOCATION**

1. All entrances shall be so located that vehicles approaching or using the entrance:
  - a. Shall be able to obtain unobstructed sight distance in both directions along the adjacent Street or Road in accordance with Table 3.2 Sight Distance.
  - b. Shall be able to maneuver safely without interference with traffic.
2. Entrances shall not be constructed within the following distances of an intersection:
  - a. 75 ft of an un-signalized intersection.
  - b. 125 ft of a signalized intersection.

### **G. SIGHT DISTANCE**

1. Entrances shall be placed such that an exiting vehicle has an unobstructed view in both directions along the adjacent Street or Road in accordance with Table 3.2.
2. Sight distance shall be measured as follows:
  - a. From a point of origin 4 ft above ground, 10 ft from the edge of the shoulder of the adjacent Street or Road, at the horizontal center of the proposed entrance.
  - b. To a point 4 ft above ground, measured in a straight line along the Street or Road, farthest from the point of origin that can be seen without obstruction.

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TABLE 3.2 SIGHT DISTANCE

| Design Speed (MPH) | Sight Distance (FT) |
|--------------------|---------------------|
| 20                 | 155                 |
| 25                 | 200                 |
| 30                 | 250                 |
| 35                 | 305                 |
| 40                 | 360                 |
| 45                 | 425                 |
| 50                 | 570                 |
| 60                 | 645                 |

**H. CURB RADIUS**

- Entrances shall have a curb radius of 35 ft along the edge of intersection between the entrance and the adjacent traveled way, except where modified by the Type-pair geometry in Section 9.

**9. INTERSECTIONS****A. PURPOSE**

- To establish geometric standards for intersections between Streets and Roads, calibrated to the Type of each intersecting facility.

**B. APPLICABILITY**

- Applies to all new intersections and to substantial reconstruction of existing intersections within the Town.
- Intersections with State Highways (R4 or R5) are subject to MaineDOT review under Section 12.

**C. GENERAL**

- The curb return radius at an intersection of two Streets or Roads is determined by the more urban Type of the two intersecting facilities, per the curb return radius stated on each Type's page in Section 2.
- At intersections between a Street Type and a Road Type, the curb return radius is determined by the Road Type, except where the Road Type connects directly to a D5 or D6 District frontage, in which case the Street Type's radius applies.
- Maximum grade within 75 ft of any intersection shall not exceed 2%.
- Minimum angle of intersection between any two Streets or Roads shall be 75 degrees, with 90 degrees preferred.
- Minimum radius along the right-of-way edge at intersections is 10 ft for Streets and 15 ft for Roads.

**D. SIGHT DISTANCE AT INTERSECTIONS**

- Sight distance at an intersection shall comply with Table 3.2 for the higher design speed of the two intersecting facilities.

**10. WATER MANAGEMENT****A. PURPOSE**

- To provide for the conveyance, control, and disposal of surface waters in the right-of-way of Streets and Roads, while protecting downstream water quality and aquatic habitat.

**B. APPLICABILITY**

- Applies to all new Streets and Roads under Section 6 and to the substantial reconstruction of existing Streets and Roads.



### **C. GENERAL**

1. Streets and Roads shall be designed to provide for the conveyance, control or disposal of surface waters including but not limited to the installation of ditches, culverts, catch basins, and piping systems consistent with their Type.

### **D. CULVERTS**

1. Culverts are required for the proper movement and removal of water adjacent to Streets and Roads to ensure safe travel conditions and protect the integrity of the road surface and subsystem.
2. Culverts shall have the following standards:
  - a. Culverts must extend beyond the combined width of the traveled way and shoulders by 18 inches on both sides.
  - b. Culvert diameter shall be a minimum of 15 inches and placed at stream bed level over a prepared base.
  - c. Culverts shall be constructed to enable unobstructed fish passage in either direction.

### **E. DITCHES**

1. Ditches shall be designed and maintained with flow lines that are 2 ft below the sub-grade breakpoint.
2. Ditches and embankments shall be seeded with erosion control landscaping.

### **F. GRADE CHANGES**

1. Streets and Roads shall be constructed so that all changes in grade shall be connected by vertical curves in order to provide a minimum stopping sight distance per Table 3.2.

## **11. CONSTRUCTION STANDARDS**

### **A. PURPOSE**

1. To provide engineering specifications for the construction of Streets and Roads consistent with their Type.

### **B. APPLICABILITY**

1. Applies to the construction of new Streets and Roads under Section 6 and to the substantial reconstruction of existing Streets and Roads under Section 14.
2. Construction of state-aid roads (R4 and R5) is governed by MaineDOT specifications per Section 12.

### **C. GENERAL**

1. Streets and Roads shall remove stumps and rocks over 6 inches in diameter from a depth not less than 18 inches below the finished top.
2. All newly constructed Streets and Roads remain Private Roads until they are formally accepted as a Town Way per Section 6.G.

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TABLE 3.3 CONSTRUCTION SPECIFICATIONS BY TYPE

| Specification                  | S1 / S2 / S3 (Town Way) | S4 / S5 (Lane / Alley) | R1 Connector | R2 / R3 (Rural)      | Driveway |
|--------------------------------|-------------------------|------------------------|--------------|----------------------|----------|
| <b>Construction</b>            |                         |                        |              |                      |          |
| Aggregate sub-base course      | 18"                     | 12"                    | 18"          | 12"                  | n/a      |
| Crushed aggregate base course  | 3"                      | 3"                     | 3"           | 3"                   | n/a      |
| <b>Hot Bituminous Pavement</b> |                         |                        |              |                      |          |
| Total HBP thickness            | 2½"                     | 2"                     | 2½"          | 2" or gravel surface | n/a      |
| Base course                    | 1½"                     | 1"                     | 1½"          | 1"                   | n/a      |
| Surface course                 | 1"                      | 1"                     | 1"           | 1"                   | n/a      |

**D. R4 AND R5 CONSTRUCTION**

1. Construction of new R4 and R5 segments and substantial reconstruction of existing R4 and R5 segments shall conform to MaineDOT specifications for the applicable functional classification.
2. Where MaineDOT specifications are less stringent than this Section for any element under Town authority (frontage zone, sidewalks, planting strips, access management), this Article controls for those elements.

**12. COORDINATION WITH MAINE DOT****A. PURPOSE**

1. To establish the coordination protocol between the Town of Newcastle and the Maine Department of Transportation for state-aid roads.

**B. APPLICABILITY**

1. Applies to all R4 (Highway Commercial) and R5 (Rural Highway) segments.
2. Applies to any entrance from a Driveway, Street, or Road onto a State Highway.

**C. AUTHORITY DIVISION**

1. **MaineDOT controls** the geometric design and construction of the cartway, shoulders, drainage within the cartway, and signage of State Highways, in accordance with MaineDOT's current Highway Design Guide and applicable federal standards.
2. **The Town controls**, through this Article and Article 2, the frontage zone, building setbacks, sidewalks (where present), planting strips, street trees, and access management (curb cut spacing and location) along State Highways.
3. Where a conflict arises between MaineDOT requirements and Town requirements for the same physical element, MaineDOT controls within the right-of-way and the Town controls outside the right-of-way.

**D. ENTRANCE PERMITS**

1. An entrance onto a State Highway requires a MaineDOT entrance permit under 23 MRSA §704 in addition to any permit required by this Article.
2. The applicant shall submit a copy of the MaineDOT entrance permit to the Permitting Authority before the Zoning Permit is issued.

**E. FUNCTIONAL CLASSIFICATION**

1. MaineDOT's functional classification of a segment (Principal Arterial, Minor Arterial, Major Collector, Minor Collector, Local) is independent of the Type assigned under this Article. The Type addresses form and character; the functional classification addresses transportation function for federal funding purposes.

2. The Town may consider MaineDOT functional classification as one factor in the classification rubric of Section 5.D.

## **13. ADMINISTRATION**

### **A. PURPOSE**

1. To describe the powers and duties of the review bodies for matters under this Article, and to coordinate Article 3 permitting with the development review framework of Article 8 (Administration).

### **B. APPLICABILITY**

1. Applies to all permits and approvals under this Article.

### **C. PERMITTING AUTHORITY**

1. The Code Enforcement Officer reviews and approves:
  - a. Driveway construction and relocation permits.
  - b. Entrance permits.
  - c. General maintenance permits where required.
2. The Planning Board reviews and approves:
  - a. Construction of new Streets and Roads under Section 6.
  - b. Substantial reconstruction of existing Streets and Roads under Section 14.
  - c. Reclassification petitions under Section 5.E.
3. The Road Commissioner reviews and certifies all construction-phase work.
4. The Code Enforcement Officer administers the Build-To Standards of Section 3.C and the contextual component requirements of Section 3.F on permits the Officer issues, and states any infeasibility finding under Section 3.F.4 in writing. The discretion to require fuller components and widths under Section 6.D is reserved to the Planning Board.

### **D. INSPECTIONS**

1. There shall be at least one on-site inspection by the Permitting Authority or their representative during construction, with the assistance of the applicant's engineer. The applicant's engineer shall certify completion and compliance with the standards of this Article.

### **E. APPLICATION FEES**

1. The application fee shall be the amount included in the Town's fee schedule.

### **F. PERMIT VALIDITY**

1. A permit issued under this Article shall be valid for a period of twelve months from the date of original issue.

### **G. APPEALS**

1. Whenever a person shall deem themselves aggrieved by an order made by the Permitting Authority:
  - a. The person may file an appeal to the Board of Appeals within 10 days of the date of the order.
  - b. The person shall be afforded a hearing on the matter before the Board of Appeals.
  - c. Unless by their authority the aggrieved order is revoked, such order shall remain in force and be forthwith complied with by the person.

### **H. WAIVERS**

1. The Permitting Authority may grant waivers from the dimensional standards stated for an assigned Type (Sections 2 and 3) as explicitly authorized in this Article and in accordance with Section 1.D Compliance, but may not grant waivers from the sight distance standards of Section 8.G or from the State Highway entrance permit requirement of Section 12.D.
2. A departure from a Build-To Standard under Section 3.C.4 is processed as part of the application and is not a waiver under this Subsection. A waiver under this Subsection is required only to build below a stated

minimum of the assigned Type, and no waiver may be granted from the safety-critical standards listed in Section 3.C.4.

## **14. NONCONFORMING STREETS & ROADS**

### **A. PURPOSE**

1. To provide for the continued operation of existing Streets and Roads that do not currently meet the standards of their assigned Type, and to specify the conditions under which conformity is required.

### **B. APPLICABILITY**

1. Applies to all Streets and Roads classified under Section 5 that do not currently meet one or more standards of their assigned Type as set forth on the Type's page in Section 2 or in Section 11 (Construction Standards).

### **C. CONTINUATION**

1. A nonconforming Street or Road may continue to operate in its existing condition.
2. General maintenance — including patching, resealing, restriping, shoulder reshaping, and culvert replacement — is permitted without bringing the Street or Road into conformity.

### **D. SUBSTANTIAL RECONSTRUCTION**

1. Substantial reconstruction of a nonconforming Street or Road requires conformity with the standards of the assigned Type, except as follows:
  - a. Where the existing right-of-way precludes a Type Standard from being met without taking additional land, the standard may be modified by the Permitting Authority to the extent necessary to fit within the existing right-of-way.
  - b. The Code Enforcement Officer or Planning Board may require the reservation of a 20 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of pedestrian traffic or utilities.
  - c. The Permitting Authority may require the reservation of a 50 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of the road.
2. "Substantial reconstruction" is defined in the same manner as in the prior Newcastle Road, Driveway, and Entrance Ordinance, namely: improvements to a previously constructed Street or Road, including but not limited to extensions to the length or width, the rip up and replacement of sub-surface road building materials for a length or section of the Street or Road that goes beyond activities associated with General Maintenance, the addition of sidewalks or wholesale rebuilding of pre-existing sidewalks, or a change from one permanent road surfacing material to another such as from dirt to asphalt, asphalt to concrete, or asphalt to dirt.

### **E. RECLASSIFICATION TO RESOLVE NONCONFORMITY**

1. Where a nonconforming Street or Road cannot reasonably be brought into conformity with its assigned Type, a reclassification petition may be filed under Section 5.E to assign a Type that more accurately reflects the segment's current and likely future character.

### **F. ACCEPTANCE OF A NONCONFORMING PRIVATE ROAD AS A TOWN WAY**

1. A Private Road that does not meet the construction standards of Section 11 for its assigned Type may not be accepted as a Town Way until the road is reconstructed to meet those standards.
2. The cost of such reconstruction shall not be borne by the Town.
3. No road shall be accepted as a Town Way without a formal vote to accept it at Annual Town Meeting.

# ARTICLE 4 SITE STANDARDS

## 1. SITE STANDARDS

### ~~A.~~**A. PURPOSE**

1. To provide standards for the development of a site.
2. To ensure that private development contributes to the character along a public street or civic space.

### ~~B.~~**B. APPLICABILITY**

1. This Article applies to alterations made to a site, including but not limited to: parking, access to a site from a public road, landscaping, buffers, loading, mechanical equipment, lighting, and signage.

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## Article 4 Site Standards › 2. DRIVEWAYS

## 2. DRIVEWAYS

### ~~A.~~**A. PURPOSE**

1. To ~~provide~~**cross-reference the standards for** vehicular access **from a Street or Road to lots:**~~the interior of a single lot.~~

### ~~B.~~**B. APPLICABILITY**

1. New driveways ~~or~~**and** driveway relocation.

### ~~C.~~**C. GENERAL**

1. Driveways must comply with the Roads, Driveways and Entrances Ordinance of Newcastle.
2. Residential Companion uses may share a driveway with the primary dwelling unit.
3. Abutting lots may share a driveway subject to the conditions of item 1 above.
4. Driveways may pass through required front, side, and rear setbacks to access permitted parking locations.
5. One driveway is permitted per building or virtual lot.
6. In D1 and D2 more than 1 driveway per lot is permitted.
7. **Driveways are regulated under Article 3 Section 7 (Driveways). Refer to Article 3 for all driveway design, location, sharing, and calibration standards.**

## 3. VEHICULAR PARKING

### ~~A.~~**A. PURPOSE**

1. To allow for parking that supports the function of abutting land uses while preserving the walk-ability and character of neighborhoods.
2. To provide standards for parking lots that enhance land values in the community.

### ~~B.~~**B. APPLICABILITY**

1. Parking lot standards apply to:

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## Article 4 Site Standards › 3. VEHICULAR PARKING › b. APPLICABILITY

2. Parking lot standards do not apply to sealing, striping, resurfacing, or replacement of the asphalt, concrete, or other surface paving material of existing parking lots.

### ~~C.~~**C. REQUIRED SPACES**

1. Off-street vehicle parking is not required in all districts. Where provided, off-street vehicle parking must comply with the standards of this section.

### ~~D.~~**D. PARKING LOCATION**

1. All off-street parking must be located behind the frontage zone, with the following exceptions:

## Article 4 Site Standards › 3. VEHICULAR PARKING › d. PARKING LOCATION

b. An otherwise un-buildable lot may contain parking provided it meets all other applicable Site Standards.

### **E.E. PARKING LOT SCREENING**

1. Where any parking lot is visible or located within 50 feet of a civic space or a road (other than an alley) the parking lot must be screened along the frontage line, by any of the following:

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## Article 4 Site Standards › 3. VEHICULAR PARKING › e. PARKING LOT SCREENING

b. A solid wall installed at the frontage line that is between two feet and three and one-half feet in height.

### **F.F. VEHICULAR ACCESS**

1. Off-street parking must be accessed from ~~an~~ ~~alley~~ ~~Lane~~ or ~~Alley~~ (Types S4 or S5 per Article 3 Section 2) or ~~from a secondary road.~~ ~~frontage~~. When there is no abutting ~~alley~~ ~~Lane~~, ~~Alley~~, or secondary ~~road,~~ ~~frontage~~, parking may be accessed from the primary ~~road.~~ ~~frontage~~.
2. Parking lots should connect with existing abutting parking lots.
3. Shared parking agreements with neighboring properties are encouraged.

### **G.G. PEDESTRIAN ACCESS**

1. Sidewalks, footpaths, or crossweaves must be provided to connect parking areas to on-site buildings, adjacent buildings, roads, existing sidewalks, and trails, or when appropriate, to amenities such as parks or open space on or adjacent to the site.

### **H.H. DESIGN**

1. Parking lots are required to plant 1 shade tree of a minimum caliper of 2 inches for every 8 parking spaces. Each parking space must be located within 40 feet of a tree.

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## Article 4 Site Standards › 3. VEHICULAR PARKING › h. DESIGN

d. Parking lot landscaping must be integral, where possible, with on-site stormwater management facilities.

### **I.I. MAINTENANCE**

1. All required plant materials must be maintained in a healthy growing condition over their lifetime and replaced as necessary.
2. All permeable surfacing materials should be maintained and tested periodically to ensure they are still functioning as intended.

### **J.J. NONCONFORMING VEHICULAR PARKING**

1. Routine repair and maintenance of nonconforming parking lots is permitted, including grading, sealing, and repaving.

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## Article 4 Site Standards › 4. BICYCLE PARKING

### **4. BICYCLE PARKING**

#### **A.A. PURPOSE**

1. To provide secure space for bicycle parking in order to support active lifestyles.

#### **B.B. APPLICABILITY**

1. Applies to projects in the D6 Town Center District that involve:

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## Article 4 Site Standards › 4. BICYCLE PARKING › b. APPLICABILITY

- c. New construction of a civic building.

#### **~~G.C.~~ GENERAL**

1. A single bicycle rack that is designed for parking two bicycles is counted as two bicycle parking spaces.

#### **~~D.D.~~ REQUIRED SPACES**

1. A minimum of 2 bicycle parking spaces must be provided for each building.
2. A minimum of 2 bicycle parking spaces is required for every 24 ft of shopfront.

#### **~~E.E.~~ DESIGN**

1. A bicycle rack may be erected on a public sidewalk in the furnishing zone.
- 

### **Article 4 Site Standards › 5. NATURAL SCREENING**

## **5. NATURAL SCREENING**

#### **~~A.A.~~ PURPOSE**

1. To provide a set of standards for visual, light, and noise barriers between uses, buildings, or activities on adjacent lots or on lots adjacent to a public way.

#### **~~B.B.~~ APPLICABILITY**

1. Applies to any application that requires a Special Permit or an Expanded Use Permit.
- 

### **Article 4 Site Standards › 5. NATURAL SCREENING › b. APPLICABILITY**

3. When applied as a standard from any part of this Code.

#### **~~G.C.~~ GENERAL**

1. Screening may take the form of either natural vegetation or man-made structures such as berms or fences.
  - a. Man-made screening of any type may only be employed to satisfy the requirements of Level 4 - Complete visual opacity.
2. In all types of vegetative screening except Level 4 - Total visual opacity, selective cutting of trees is allowed, provided that a well distributed stand of trees and other natural vegetation is maintained as described in each of the Levels of Screening.
3. A screening area of vegetation shall be defined as maintaining a certain rating score, or more, in any 25 ft by 50 ft, non overlapping, rectangular area(s) within the screening area. See Table 3-14.1 Screening Formula
4. Screening areas may encroach onto front, side, or rear setbacks.

#### **~~D.D.~~ LEVELS OF SCREENING**

1. Level 1 - Total visual transparency.
- 

### **Article 4 Site Standards › 5. NATURAL SCREENING › d. LEVELS OF SCREENING**

- ii. If total visual opacity cannot be provided by natural vegetation, the Planning Board may require a 100% opaque fence, or additional setbacks to fulfill this standard.

#### **~~E.E.~~ RATING SCORE**

1. The 25 ft by 50 ft rectangular plot of screening area or must be established where the landowner or lessee proposes clearing within the required buffer.
- 

### **Article 4 Site Standards › 5. NATURAL SCREENING › e. RATING SCORE**

6. The diameter of the tree shall be measured at a height of 4 ft 6 in from ground level.

TABLE 3-14.1 SCREENING FORMULA

## [Article 4 Site Standards](#) › **6. LANDSCAPING**

### **6. LANDSCAPING**

#### ~~A.~~**A. PURPOSE**

1. To ensure that landscaping supports a clear transition between the street and adjacent buildings.
- 

## [Article 4 Site Standards](#) › **6. LANDSCAPING** › **a. PURPOSE**

4. To minimize conflicts between landscaping and areas that require easy and safe human access.

#### ~~B.~~**B. APPLICABILITY**

1. Commercial properties.
- 

## [Article 4 Site Standards](#) › **6. LANDSCAPING** › **b. APPLICABILITY**

4. Civic spaces.

#### ~~C.~~**C. DESIGN & INSTALLATION**

1. Plant materials installed adjacent to roads that are plowed and typically receive seasonal salt treatment should be non-woody and salt-tolerant to ensure survival.
- 

## [Article 4 Site Standards](#) › **7. FIELDS**

### **7. FIELDS**

#### ~~A.~~**A. PURPOSE**

1. To protect rural character by providing guidance for the development of fields.

#### ~~B.~~**B. APPLICABILITY**

1. Applies to any lot that contains a field of 5 acres or more.
2. Does not apply to new Commercial Agricultural uses.

#### ~~C.~~**C. GENERAL**

1. Development within a field of 5 acres or more must be reviewed by the Planning Board.
- 

## [Article 4 Site Standards](#) › **8. FENCES & WALLS**

### **8. FENCES & WALLS**

#### ~~A.~~**A. PURPOSE**

1. To ensure that fences allow for delineation of private yard space while allowing for a street that is visually transparent, safe, and interesting.
2. To allow for rear yard fences that provide privacy.

#### ~~B.~~**B. APPLICABILITY**

1. The standards of this Article apply to any new fences or walls, including those required per use standards in Article 67 Use Standards, to minimize the trespass of undue sound and light between abutting properties.

#### ~~C.~~**C. FENCES & WALLS**

1. Fences and walls shall have a minimum 6 inch setback from any lot line or virtual lot line.
- 

## [Article 4 Site Standards](#) › **8. FENCES & WALLS** › **c. FENCES & WALLS**



c. Split rail fences are permitted along any lot line in D1.

#### **~~D~~.D. RETAINING WALLS**

1. Projects should be designed in a way to reduce the need for retaining walls.
2. Retaining walls over 6 feet in height are prohibited, except in D1 or by special permit.

#### **~~E~~.E. NONCONFORMING FENCES & WALLS**

1. Routine repair and maintenance of nonconforming fences and walls is permitted.

---

### **Article 4 Site Standards › 9. MECHANICAL EQUIPMENT**

## **9. MECHANICAL EQUIPMENT**

#### **~~A~~.A. PURPOSE**

1. To allow for mechanical equipment while minimizing negative impacts of noise, blowing air, and smells on pedestrians and abutting properties.

#### **~~B~~.B. APPLICABILITY**

1. Applies to all new buildings or substantial modifications to existing buildings.

#### **~~C~~.C. ROOF-MOUNTED**

1. Mechanical equipment must be hidden from ground level view from the road, and abutting properties by a structure at least one foot above the height of the mechanical equipment and be of durable, permanent materials.

#### **~~D~~.D. BUILDING OR GROUND MOUNTED**

1. Mechanical equipment cannot be located within the frontage zone.

---

### **Article 4 Site Standards › 10. LOADING DOCKS**

## **10. LOADING DOCKS**

#### **~~A~~.A. PURPOSE**

1. To provide design guidance for the design and orientation of loading docks.
2. To ensure loading docks are properly screened when necessary.

#### **~~B~~.B. APPLICABILITY**

1. The following standards apply to loading docks.

#### **~~C~~.C. GENERAL**

1. Loading docks are not permitted within the frontage zone.

---

### **Article 4 Site Standards › 11. DRIVE-THROUGHS**

## **11. DRIVE-THROUGHS**

#### **~~A~~.A. PURPOSE**

1. To permit auto-oriented drive-through services in a predictable manner.
2. To reduce the negative impacts associated with drive-throughs on abutting properties, pedestrians, and bicycle traffic.

#### **~~B~~.B. APPLICABILITY**

1. Applies to all new drive-throughs.

---

### **Article 4 Site Standards › 11. DRIVE-THROUGHS › b. APPLICABILITY**

4. Drive-through standards apply to all businesses where a vehicle must pass under a roof covering or overhang in order to be serviced.

#### **~~C.~~C. GENERAL**

1. Drive-throughs including incidental roof coverings, overhangs, ordering, point of sale and pick-up locations may not be located in the frontage zone.

---

### **Article 4 Site Standards › 12. LIGHTING**

## **12. LIGHTING**

#### **~~A.~~A. PURPOSE**

1. To allow adequate night time lighting that provides safety, utility and security.

---

### **Article 4 Site Standards › 12. LIGHTING › a. PURPOSE**

6. To require lighting fixtures and layout patterns that contribute to unified exterior lighting design of development.

#### **~~B.~~B. APPLICABILITY**

1. Applies to all outdoor lighting fixtures except for the following:

---

### **Article 4 Site Standards › 12. LIGHTING › b. APPLICABILITY**

5. Ground mounted pedestrian lighting.

#### **~~C.~~C. GENERAL**

1. Lighting levels are regulated by District according to total permitted lumens per square foot, a unit of measurement related to light intensity.
2. The average lumens per square foot of all outdoor lighting may not exceed the site lumen limit of Table 3.14.2 Site Lumens.
3. Light levels must be specified, calculated, and measured in lumens per square foot, as calculated by multiplying the square footage of the paved portion of the area to be lighted by the allowed lumens per district to determine a total maximum number of allowed lumens for that area.
4. Total allowed lighting for any given area should be evenly distributed across the paved portion of a site.

---

### **Article 4 Site Standards › 12. LIGHTING › c. GENERAL**

- b. The proposed use or lighting will not create unnecessary glare, sky glow, or light trespass.

#### **TABLE 3.14.2 SITE LUMENS**

District | Average Lumens/SF |

---

### **Article 4 Site Standards › 12. LIGHTING › c. GENERAL**

SD-CIVIC | 1.25 max |

#### **~~D.~~D. OFF-SITE IMPACTS**

1. Light levels measured at the front lot line exceeding 1.0 foot candles are prohibited except in D6.
2. Light levels measured at any side or rear lot line of any property abutting any D3 and D4 districts exceeding 1.0 foot candles are prohibited.

#### **~~E.~~E. NONCONFORMING LIGHTING**

1. Routine repair and maintenance of nonconforming lighting is permitted so long as any changes to bulbs and lighting intensity are brought into compliance with this Code.

#### Article 4 Site Standards › 12. LIGHTING › e. NONCONFORMING LIGHTING

5. Any nonconforming lighting associated with an abandoned building or business located within D5, D6, or any special district must meet the lighting standards before any new permits or approvals may be issued.

#### ~~F.F.~~ FIXTURE HEIGHT

1. Lighting intended to illuminate areas for pedestrian travel and/or seating must be mounted between 12 and 15 feet in height.

---

#### Article 4 Site Standards › 12. LIGHTING › f. FIXTURE HEIGHT

3. Light fixtures located within 50 feet of the side or rear lot line abutting any residential neighborhood are not permitted above 15 feet in height.

#### ~~G.G.~~ SHIELDING

1. All outdoor lighting fixtures must be placed and directed to prevent light trespass or glare onto abutting roads or properties in a manner that may distract or interfere with the vision of drivers or create a nuisance for abutting residential uses.

---

#### Article 4 Site Standards › 12. LIGHTING › g. SHIELDING

3. All outdoor light fixtures must be fitted so that no portion of the light source or drop lens is visible below the fixture when viewed directly from the side.

#### ~~H.H.~~ PROHIBITED LIGHTING

1. The following is prohibited:

---

#### Article 4 Site Standards › 12. LIGHTING › h. PROHIBITED LIGHTING

- f. Strobe lights and rotating lights.

#### ~~I.I.~~ SPECIFIC LIGHTING REQUIREMENTS

1. Vehicular Canopies

---

#### Article 4 Site Standards › 12. LIGHTING › i. SPECIFIC LIGHTING REQUIREMENTS

- a. All commercial parking areas in D6 and Special Districts are required to provide lighting during night time hours of operation.

## ARTICLE 4~~5~~ BUILDING STANDARDS

### 1. BUILDING TYPES

#### ~~A.A.~~ PURPOSE

1. To provide descriptions for different types of buildings.

#### ~~B.B.~~ APPLICABILITY

1. Applies to all buildings.

#### ~~G.C.~~ GENERAL

1. Buildings shall be classified as Primary or Accessory as follows:

---

#### Article 5 Building Standards › 2. NUMBER OF BUILDINGS

## 2. NUMBER OF BUILDINGS

### ~~A.~~**A. PURPOSE**

1. To be able to effectively regulate the number of buildings allowed on a lot.

### ~~B.~~**B. APPLICABILITY**

1. Applies to all buildings and lots.

### ~~C.~~**C. GENERAL**

1. Only one Primary Building may be built on each lot or virtual lot.
- 

## Article 5 Building Standards › 3. BUILDING ASSEMBLY

## 3. BUILDING ASSEMBLY

### ~~A.~~**A. PURPOSE**

1. To provide a clear and flexible system for enabling the construction of new buildings and the expansion and modification of existing buildings.
2. To allow for a broad range of building designs.

### ~~B.~~**B. APPLICABILITY**

1. Applies to all buildings in any District that contains a Permitted Buildings table.

### ~~C.~~**C. GENERAL**

1. All Primary Buildings and all Accessory Buildings must meet the standards for one of the building types provided within this Code.
- 

## Article 5 Building Standards › 3. BUILDING ASSEMBLY › c. GENERAL

5. Integral components may be used to cut away space within the boundaries of the roof or Main Building Mass provided the eaves and ridge beam of the roof are not affected.

### ~~D.~~**D. ATTACHMENTS**

1. Components may attach to primary and accessory buildings.
- 

## Article 5 Building Standards › 4. BUILDING ELEVATION

## 4. BUILDING ELEVATION

### ~~A.~~**A. PURPOSE**

1. To ensure that buildings with first floor residential uses are raised above the level of the ground as a way to protect privacy in neighborhoods where buildings are located close to the street.
2. To ensure that buildings with first floor commercial spaces are located at grade to the extent possible to provide accessible shopfronts.

### ~~B.~~**B. APPLICABILITY**

1. Applies to all new primary buildings and accessory buildings, with residential first floor units, in any District that contains a Permitted Buildings table.

### ~~C.~~**C. GENERAL**

1. Buildings must be elevated along their primary frontage to meet first floor elevation requirements of each primary and accessory building type.
- 

## Article 5 Building Standards › 5. ADDITIONS

## 5. ADDITIONS

### ~~A.~~**A. PURPOSE**

1. To provide a basic framework for the regulation of generic additions to buildings.

### ~~B.~~**B. APPLICABILITY**

1. Applies to the expansion of the square footage of a Primary Building or Accessory Building.
2. Applies to any expansion of an existing Primary Building or Accessory Building that incorporates a roof.

### ~~C.~~**C. GENERAL**

1. Additions are not regulated by form, size, scale, shape, color, roof type, windows and doors or any other such element of the addition, except for the following:

---

#### Article 5 Building Standards › 5. ADDITIONS › c. GENERAL

2. Additions which do not conform to a,b,c,d above shall be considered a Primary Building or Accessory Building and shall require a permit.

#### TABLE 4-15.1 ALLOWABLE ADDITION LOCATION BY DISTRICT

- = Additions are allowable in the specified location.

---

#### Article 5 Building Standards › 6. BUILDING ARTICULATION

## 6. BUILDING ARTICULATION

### ~~A.~~**A. PURPOSE**

1. To enable buildings that contribute to the overall character of a street.
2. To minimize exaggerated building articulations that can interrupt pedestrian movement and result in a disorienting built environment.

### ~~B.~~**B. APPLICABILITY**

1. Applies to new buildings in District D6 Town Center.

### ~~C.~~**C. GENERAL**

1. Architectural features and small articulations less than 6 horizontal inches from the surface of a building's facade are permitted.

---

#### Article 5 Building Standards › 7. HEIGHT

## 7. HEIGHT

### ~~A.~~**A. PURPOSE**

1. To create a predictable and clear approach to measuring and regulating height of buildings.

### ~~B.~~**B. APPLICABILITY**

1. Applies to all new buildings or modifications to existing buildings that increase the overall height of the structure.

### ~~C.~~**C. STORY HEIGHT**

1. Building height in this Code is measured in stories.

---

#### Article 5 Building Standards › 7. HEIGHT › c. STORY HEIGHT

7. In the event that floor heights vary in different parts of the same building, such that multiple stories in one area equate in height to one story in another, the shorter floor-to-floor height should be used to determine number of stories, provided that none of the floors is a mezzanine.

#### **~~D~~.D. HEIGHT EXCEPTIONS**

1. Maximum height standards do not apply to mechanical equipment; vents or exhausts; solar panels or skylights; flagpoles; chimneys; parapets; or other non-habitable architectural features.
2. The maximum heights of roof decks, towers, turrets, cupolas, and penthouses are regulated in Article 5-56.5 Architectural Components.

### **8. MATERIALS**

#### **~~A~~.A. PURPOSE**

1. To allow for a range of building materials that reflect local character.

#### **~~B~~.B. APPLICABILITY**

1. Applies to new buildings or to substantially modified buildings in any District that contains a Permitted Buildings table.

#### **~~C~~.C. GENERAL**

1. On building facades, the exterior finish material must be brick, wood clapboard, wood shingles, cement board siding, stone, or corrugated metal, and / or lime-based stucco or other materials that have the appearance of natural materials.

---

## **Article 5 Building Standards › 9. ADDITIONAL STRUCTURES**

### **9. ADDITIONAL STRUCTURES**

#### **~~A~~.A. PURPOSE**

1. To allow for additional structures that support activities associated with primary and accessory buildings.
2. To minimize visual impacts from private and public spaces.

#### **~~B~~.B. APPLICABILITY**

1. Applies to any structure on a lot, not including primary or accessory buildings such as, but not limited to, garden sheds.
2. Does not apply to Temporary Structures. See section 10 Temporary Structures

#### **~~C~~.C. GENERAL**

1. Additional structures shall not contain a dwelling unit.
2. Additional structures are permitted in conjunction with primary or accessory buildings and must be clearly incidental and subordinate in terms of area, size, use, and location. See Table 4-2:5.2: Additional Structures.
  - a. The Absolute Height of an Additional Structure shall not exceed the height of the tallest building on the site.
3. Additional Structures shall be under the same ownership and on the same lot as the primary or accessory building.
4. Additional structures may be permitted on undeveloped lots in D1, D2, and SD-Conservation.
5. A Marina, Dry Storage use shall be permitted to construct Additional Structures up to 1,200 sf in area.
  - a. Additional Structures larger than the maximum structure area set forth in Table 4-2:5.2: Additional Structures shall be removed from the site at the time of the discontinuance of the Marina, Dry Storage use.

#### **~~D~~.D. SCREENING**

1. Additional Structures are required to be screened from view when they are located in a district identified in Table 4-2:5.2: Additional Structures below
2. Screening is required to screen Additional Structures from view from Public Roads.

3. Screening must be of a height equal to or greater than the height of the Additional Structure being screened.
4. Screening shall be a fence, wall, dense evergreen hedge, or a Level 4 Natural Screen.

#### **E.E. SETBACKS**

- a. Additional structures must follow the Accessory Building Placement Setbacks for their applicable District.

#### **TABLE 4-2-5.2: ADDITIONAL STRUCTURES**

District | Structure Area (Max) | Screening Required |

### **Article 5 Building Standards › 10. TEMPORARY STRUCTURES**

## **10. TEMPORARY STRUCTURES**

#### **A.A. PURPOSE**

1. To provide standards for the short term deployment of a structure to shelter people, products, equipment, or animals from the elements.

#### **B.B. APPLICABILITY**

1. Applies to any structure not classified as a Primary, Accessory or Additional Structure, and is temporary in nature, including but not limited to tents, carports, storage containers, and moving equipment.

#### **G.C. GENERAL**

1. Temporary Structures require a permit from the Code Enforcement Officer, unless:

### **Article 5 Building Standards › 11. PRIMARY ENTRANCES**

## **11. PRIMARY ENTRANCES**

#### **A.A. PURPOSE**

1. To ensure that buildings are accessible from Public Roads as a way to encourage pedestrian activity.
2. To prevent long expanses of blank walls.

#### **B.B. APPLICABILITY**

1. Applies to new buildings in any District that contains a Permitted Buildings table.
2. Applies to modifications to existing buildings, that include a change in use to a commercial use, in any District that contains a Permitted Buildings table.

#### **G.C. GENERAL**

1. At least one primary entrance must be located along the primary frontage of a primary building's Main Building Mass.

### **Article 5 Building Standards › 12. SHOPFRONTS**

## **12. SHOPFRONTS**

#### **A.A. PURPOSE**

1. To ensure that areas intended for commercial activity have shopfront treatment that supports business vitality.

#### **B.B. APPLICABILITY**

1. The first floor facade of buildings that front onto a road designated as a Shopfront Required on the Zoning Map.

#### **G.C. GENERAL**

1. Shopfronts, where required, must provide doors and windows with a minimum of 70% glazing.

---

## Article 5 Building Standards › 12. SHOPFRONTS › c. GENERAL

8. The area of a commercial unit is determined by the first floor height multiplied by horizontal distance between the interior walls of the unit, measured at the frontage.

### ~~B.D.~~ **NONCONFORMING SHOPFRONTS**

1. Routine repair and maintenance of nonconforming shopfronts is permitted.
- 

## Article 5 Building Standards › 13. SLOPES & TERRACES

### 13. SLOPES & TERRACES

#### ~~A.A.~~ **PURPOSE**

1. To ensure that buildings located in mixed-use areas meet the sidewalk.
2. To allow terraces as a way to provide pedestrian circulation adjacent to Shopfronts on streets with steep slopes.

#### ~~B.B.~~ **APPLICABILITY**

1. Applies to new buildings or existing buildings, in any District that contains a Permitted Buildings table, onto which a terrace is added.

#### ~~C.C.~~ **GENERAL**

1. Buildings with a 0 ft front setback must provide entrances at grade to the abutting sidewalk.
- 

## Article 5 Building Standards › 14. MEZZANINES

### 14. MEZZANINES

#### ~~A.A.~~ **PURPOSE**

1. To allow additional flexibility within building envelopes.
2. To enable additional partial floors to encourage tall stories.

#### ~~B.B.~~ **APPLICABILITY**

1. Applies to new buildings or existing buildings, in any District that contains a Permitted Buildings table, in which a mezzanine is added.

#### ~~C.C.~~ **GENERAL**

1. Publicly accessible mezzanines may be provided within a building story with the following standards:
- 

## Article 5 Building Standards › 15. NONCONFORMING BUILDINGS

### 15. NONCONFORMING BUILDINGS

#### ~~A.A.~~ **PURPOSE**

1. To allow for the flexible modification, adaption, reuse, and expansion of buildings that existed prior to and were made non-conforming by this Code.

#### ~~B.B.~~ **APPLICABILITY**

1. Applies to all buildings, accessory buildings, and additional structures that existed prior to the adoption of this Code, and that do not meet all the standards of this Code.

#### ~~C.C.~~ **GENERAL**

1. Routine repair and maintenance of nonconforming buildings is permitted.
- 

## Article 5 Building Standards › 16. LARGE SCALE BUILDINGS



## 16. LARGE SCALE BUILDINGS

### ~~A.~~**A. PURPOSE**

1. To ensure that larger buildings along a Public Road are scaled appropriately.

### ~~B.~~**B. APPLICABILITY**

1. Applies to buildings with a total area of 10,000 sq ft or more.

### ~~C.~~**C. GENERAL**

1. Within 50 ft of a Public Road, no single building or grouping of attached buildings shall exceed 180 feet in aggregate length.

---

## Article 5 Building Standards › 17. SIZE CAP

## 17. SIZE CAP

### ~~A.~~**A. PURPOSE**

1. To require a maximum structure gross floor area for any and all single retail or service establishments.

### ~~B.~~**B. APPLICABILITY**

1. This section and its maximum gross floor area restriction applies to all new, retail, or service establishments and to all expansions of existing retail or service establishments.

### ~~C.~~**C. GENERAL**

1. No single retail or service establishment, whether located in a single structure, a combination of structures, single tenant space, or an aggregate of structures, single tenant spaces or tenant spaces in an aggregate of structures, may exceed 35,000 sf of gross floor area. All adjacent retail or service establishments which share a common check stand, management, controlling ownership or storage areas will be considered a "single retail or service establishment" and their aggregate square footage of floor area will be used to determine compliance with the standards of this Code.

---

## Article 5 Building Standards › 18. BUILDING GROUPS

## 18. BUILDING GROUPS

### ~~A.~~**A. GENERAL**

1. Building groups may be used as an alternative development pattern with unique lot standards and setback standards defined by the building group.

---

## Article 5 Building Standards › 18. BUILDING GROUPS › a. GENERAL

3. All buildings that are incorporated into a building group must be located on a single lot or virtual lot.
4. Building Group standards supersede General, District, and Site Standards where the standards differ.
5. The four types of Building Groups are, Connected Farm, Small Rural Compound, Large Rural Compound, and Multi-Unit Court. The Districts where each type of Building Group is allowable is regulated in Table 4-35.3 Building Groups Permitted By District.

TABLE 4-35.3 BUILDING GROUPS PERMITTED BY DISTRICT

| Connected Farm | Small Rural Compound | Large Rural Compound | Multi-Unit Court |

---

## Article 5 Building Standards › 18. BUILDING GROUPS › a. GENERAL

SD-Conserve|||||

### ~~B.~~**B. CONNECTED FARM**

1. Description

---

**Article 5 Building Standards › 18. BUILDING GROUPS › b. CONNECTED FARM**

h. The primary entrance to the primary building may be located either on the buildings front, or on its side.

**TABLE 4-45.4 CONNECTED FARM - PERMITTED BUILDINGS**

| Single-Unit Residential | Residential Accessory | Commercial Accessory |

---

**Article 5 Building Standards › 18. BUILDING GROUPS › b. CONNECTED FARM**

Upper Floor Height | 10 ft | 8 ft | – |

**G.C. SMALL RURAL COMPOUND**

1. Description

---

**Article 5 Building Standards › 18. BUILDING GROUPS › c. SMALL RURAL COMPOUND**

l. The curb cut for a small rural compound must be a minimum of 500 ft from any adjacent curb cut.

**TABLE 4-55.5 SMALL RURAL COMPOUND - PERMITTED BUILDINGS**

| Single-Unit Residential | Multi-unit Residential | Mixed-Use Building | Residential Accessory | Commercial Accessory |

---

**Article 5 Building Standards › 18. BUILDING GROUPS › c. SMALL RURAL COMPOUND**

Upper Floor Height | 10 ft | 10 ft | 10 ft | 8 ft | – |

**D.D. LARGE RURAL COMPOUND**

1. Description

---

**Article 5 Building Standards › 18. BUILDING GROUPS › d. LARGE RURAL COMPOUND**

l. Each large rural compound must have a maximum of one curb cut from a Public Road and be a minimum of 500 ft from any adjacent curb cut.

**TABLE 4-65.6 LARGE RURAL COMPOUND PERMITTED-BUILDINGS**

| Single-Unit Residential | Multi-unit Residential | Mixed-Use Building | Multi-Unit Commercial | Residential Accessory | Commercial Accessory |

---

**Article 5 Building Standards › 18. BUILDING GROUPS › d. LARGE RURAL COMPOUND**

Upper Floor Height | 10 ft | 10 ft | 10 ft | 10 ft | 8 ft | – |

**E.E. MULTI-UNIT COURT**

1. Description

---

**Article 5 Building Standards › 18. BUILDING GROUPS › e. MULTI-UNIT COURT**

n. Pedestrian walkways and sidewalks providing access within a multi-use court shall not exceed 10 ft wide.

**TABLE 4-75.7 MULTI-UNIT COURT - PERMITTED BUILDINGS**

| Single-Unit Residential |

---

**Article 5 Building Standards › 18. BUILDING GROUPS › e. MULTI-UNIT COURT**

Upper Floor Height | 8 ft |

# ARTICLE 56 DESIGN STANDARDS

## 1. GENERAL

### ~~A.~~**A. PURPOSE**

1. Encourage the continued use of historically or architecturally important buildings and those which contribute to the character of the Historic areas and discourage their demolition and removal

---

#### Article 6 Design Standards › 1. GENERAL › a. PURPOSE

5. Assure the protection and preservation of archaeological sites.

### ~~B.~~**B. APPLICABILITY**

1. Design Standards shall apply to the construction of new buildings or additions to existing buildings.

---

#### Article 6 Design Standards › 1. GENERAL › b. APPLICABILITY

3. Non-conforming structures or components shall be grandfathered for a period of 12 months from the date of their removal, after which replacement structures or components shall comply with these Design Standards.

#### TABLE 5-16.1 DESIGN STANDARDS BY DISTRICT

A = Architectural Components are allowable in the specified location and shall meet applicable Design Standards.

---

#### Article 6 Design Standards › 2. COMPONENTS, GENERAL

## 2. COMPONENTS, GENERAL

### ~~A.~~**A. PURPOSE**

1. To provide a clear and flexible system for enabling the construction of new buildings and the expansion and modification of existing buildings.

### ~~B.~~**B. APPLICABILITY**

1. Components are regulated by District. See District Page for specific applicability.

### ~~C.~~**C. GENERAL**

1. Where applicable, a minimum of one component is required per primary building type.
2. Components are divided into two categories: Massing Components and Architectural Components. Unless specified in the Code, the term 'component' refers to either category.

### ~~D.~~**D. ATTACHMENTS**

1. All components may attach to other components, unless otherwise indicated.

---

#### Article 6 Design Standards › 2. COMPONENTS, GENERAL › d. ATTACHMENTS

6. Any enclosed component, that is permitted to extend flush with a side or rear lot line, is permitted to attach to a neighboring structure also built flush to the same lot line.

### ~~E.~~**E. ENCROACHMENTS**

1. In District D6 Town Center, Components may encroach their entire width and/or depth into all setbacks.
2. in District D6 Town Center, Components may be allowed to encroach into the public right-of-way by special permit.

### ~~F.~~**F. NONCONFORMING COMPONENTS**

1. Routine repair and maintenance of nonconforming components is permitted.

---

## Article 6 Design Standards › 2. COMPONENTS, GENERAL › f. NONCONFORMING COMPONENTS

5. When any portion of a nonconforming component is damaged and does not require a total reconstruction, it may be repaired and rebuilt to its previous condition.

### ~~G.~~**G. EXTERIOR FIRE ESCAPES**

1. Exterior fire escapes shall not be permitted on new buildings.
- 

## Article 6 Design Standards › 3. MASSING COMPONENTS

### 3. MASSING COMPONENTS

#### ~~A.~~**A. PURPOSE**

1. To provide standards for the addition of enclosed spaces attached to a primary or accessory buildings.

#### ~~B.~~**B. APPLICABILITY**

1. Applies to the front, side, and rear sides of all primary and accessory buildings on a lot when designated in table 5-16.1 Design Standards By District.

#### ~~G.~~**C. FRONT OR SIDE EXPANSION**

1. Definition
- 

## Article 6 Design Standards › 3. MASSING COMPONENTS › c. FRONT OR SIDE EXPANSION

- e. The Front/Side Expansion may be used for vehicular parking, provided the garage doors are not within the frontage zone.

### TABLE 5-26.2 FRONT OR SIDE EXPANSION DIMENSIONS

Property | Standard |

---

## Article 6 Design Standards › 3. MASSING COMPONENTS › c. FRONT OR SIDE EXPANSION

Windows & Doors | 20% min |

#### ~~D.~~**D. REAR EXPANSION**

1. Definition
- 

## Article 6 Design Standards › 3. MASSING COMPONENTS › d. REAR EXPANSION

- d. The rear expansion may be used for vehicular parking, provided the garage doors are not within the frontage zone.

### TABLE 5-36.3 REAR EXPANSION DIMENSIONS

Property | Standard |

---

## Article 6 Design Standards › 3. MASSING COMPONENTS › d. REAR EXPANSION

Windows & Doors | 20% min |

#### ~~E.~~**E. CONNECTOR**

1. Definition
- 

## Article 6 Design Standards › 3. MASSING COMPONENTS › e. CONNECTOR

- c. Connectors may not encroach on setbacks.

### TABLE 5-46.4 CONNECTOR DIMENSIONS

Property | Standard |

---

---

## Article 6 Design Standards › 3. MASSING COMPONENTS › e. CONNECTOR

Windows & Doors | 10% min |

### ~~F.~~F. TOWER

1. Definition

---

## Article 6 Design Standards › 3. MASSING COMPONENTS › f. TOWER

h. Towers built as silos on a barn may ignore widow and door requirements.

TABLE 5-5: ~~5.5~~6.5 TOWER DIMENSIONS

Property | Standard |

---

## Article 6 Design Standards › 3. MASSING COMPONENTS › f. TOWER

Windows & Doors | 30% min (8) |

### ~~G.~~G. EXTENDED SHOPFRONT

1. Definition

---

## Article 6 Design Standards › 3. MASSING COMPONENTS › g. EXTENDED SHOPFRONT

c. Only 1 extended shopfront allowed per building face.

TABLE 5-6: ~~6.6~~6.6 EXTENDED SHOPFRONT DIMENSIONS

Property | Standard |

---

## Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS

### 4. ARCHITECTURAL COMPONENTS

#### ~~A.~~A. PURPOSE

1. To provide standards for the addition of un-enclosed components that are attached to a primary or accessory buildings.

#### ~~B.~~B. APPLICABILITY

1. Applies to the front, side, and rear sides of all primary and accessory buildings on a lot when designated in table 5-16: ~~16.1~~ Design Standards By District.

#### ~~C.~~C. PORCH

1. Definition

---

## Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › c. PORCH

f. When built at the first floor, and higher than 3 feet above the ground, the space between piles or piers must be enclosed with latticework or similar material, or concealed visually by evergreen landscaping, on all sides.

TABLE 5-7: ~~7.7~~6.7 PORCH DIMENSIONS

Property | Standard |

---

## Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › c. PORCH

Windows & Doors | 60% min when enclosed |

#### ~~D.~~D. STOOP

1. Definition

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › d. STOOP**

e. If a stoop is built encroaching onto a public sidewalk, it must provide at least 3 ft clear and unobstructed between its outermost face and the face of the curb.

TABLE 5-8 ~~6.8~~ STOOP DIMENSIONS

Property | Standard |

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › d. STOOP**

Projection | 3 ft 6 in min |

**~~E.~~ E. GALLERY**

1. Definition

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › e. GALLERY**

e. When built at the first floor, the platform must extend visually to the ground plane.

TABLE 5-9 ~~6.9~~ GALLERY DIMENSIONS

Property | Standard |

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › e. GALLERY**

Windows & Doors | 60% min when enclosed |

**~~F.~~ F. CROSS GABLE**

1. Definition

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › f. CROSS GABLE**

b. Two cross gables of equal size and roof pitch may be used together and may occupy the same space, with an overlap of no more than 1/2 the width of each.

TABLE 5-10 ~~6.10~~ CROSS GABLE DIMENSIONS

Property | Standard |

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › f. CROSS GABLE**

Windows & Doors | 20% min |

**~~G.~~ G. SHED DORMER**

1. Definition

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › g. SHED DORMER**

c. Gable end setbacks may be 0 ft from the building face when not visible from a road (not including alleys).

TABLE 5-11 ~~6.11~~ SHED DORMER DIMENSIONS

Property | Standard |

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › g. SHED DORMER**

Windows & Doors | 20% min |

**~~H.~~ H. DORMER WINDOW**

1. Definition

---

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › h. DORMER WINDOW**

d. When attached to a mansard or gambrel roof, the eave of the dormer may not pass above the chine of the roof.

TABLE 5-126.12 DORMER WINDOW DIMENSIONS

Property | Standard |

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › h. DORMER WINDOW**

Height | (see H.2.d above) |

**~~H.~~I. BAY WINDOW**

1. Definition

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › i. BAY WINDOW**

f. Bay windows may provide openings for doorways or windows.

TABLE 5-136.13 BAY WINDOW DIMENSIONS

Property | Standard |

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › i. BAY WINDOW**

Windows & Doors | 30% min |

**~~J.~~J. BALCONY**

1. Definition

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › j. BALCONY**

h. When built on top of a porch, gallery, portico, or arcade, the balcony may extend to the boundaries of the component below.

TABLE 5-146.14 BALCONY DIMENSIONS

Property | Standard |

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › j. BALCONY**

Projection | 8 ft max |

**~~K.~~K. ARCADE**

1. Definition

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › k. ARCADE**

e. Arcades may wrap around corners to attach to other arcades on abutting building faces.

TABLE 5-156.15 ARCADE DIMENSIONS

Property | Standard |

---

**Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › k. ARCADE**

Windows & Doors | 70% min when enclosed |

**~~L.~~L. PORTICO**

1. Definition

---

#### Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › I. PORTICO

c. A portico must be elevated on a platform at least 1 foot from the surface of the ground.

TABLE 5-166.16 PORTICO DIMENSIONS

Property | Standard |

---

#### Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › I. PORTICO

Windows & Doors | n/a |

#### ~~M.~~M. CANOPY

1. Definition

---

#### Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › m. CANOPY

b. Canopies should be inset from the corners of the wall to which they are attached by at least 3 inches.

TABLE 5-176.17 CANOPY DIMENSIONS

Property | Standard |

---

#### Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › m. CANOPY

Windows & Doors | n/a |

#### ~~N.~~N. CUPOLA

1. Definition

---

#### Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › n. CUPOLA

c. The highest point of a cupola may be higher than the highest point of the roof of the primary building.

TABLE 5-186.18 CUPOLA DIMENSIONS

Property | Standard |

---

#### Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › n. CUPOLA

Windows & Doors | 40% min |

#### ~~O.~~O. TURRET

1. Definition

---

#### Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › o. TURRET

f. The highest point of the roof of a turret may be higher than the highest point of the roof of the primary building.

TABLE 5-196.19 TURRET DIMENSIONS

Property | Standard |

---

#### Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › o. TURRET

Windows & Doors | 30% min |

#### ~~P.~~P. DECK

1. Definition

---



## Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › p. DECK

c. Decks may not be enclosed.

TABLE 5-20 **6.20** DECK DIMENSIONS

Property | Standard |

---

## Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › p. DECK

Windows & Doors | none |

### **Q.0. ROOF DECK**

1. Definition

---

## Article 6 Design Standards › 4. ARCHITECTURAL COMPONENTS › q. ROOF DECK

e. The highest point of a roof deck may be higher than the highest point of the roof of the primary building.

TABLE 5-21 **6.21** ROOF DECK DIMENSIONS

Property | Standard |

---

## Article 6 Design Standards › 5. ROOFS

### 5. ROOFS

#### **A.A. PURPOSE**

1. To provide for buildings that have identifiable roof shapes.

#### **B.B. APPLICABILITY**

1. Roof standards are regulated by District. See District Page for specific applicability.
2. Where applicable, Roof standards apply to all primary and accessory building types and components unless otherwise indicated.

#### **C.C. GENERAL**

1. Pitched roofs must converge to a single ridge beam at their highest point.

---

## Article 6 Design Standards › 5. ROOFS › c. GENERAL

6. Where Gable or Gambrel roofs are permitted, the ridge beam must be continuous front to back, or side to side.

#### **D.D. NONCONFORMING ROOFS**

1. Routine repair and maintenance of nonconforming roofs is permitted.

---

## Article 6 Design Standards › 6. WINDOW & DOOR

### 6. WINDOW & DOOR

#### **A.A. PURPOSE**

1. To ensure that buildings relate to the street by providing a rhythm of door and window openings to minimize blank walls along roads.

#### **B.B. APPLICABILITY**

1. Window and Door standards are regulated by District. See District Page for specific applicability.
2. Where applicable, Window and Door standards apply to all new primary buildings, accessory buildings, and components.

### **~~C.C.~~ GENERAL**

1. Window and Door standards apply to all building facades, except where the installation of windows along side or rear property lines is infeasible due to separation requirements mandated by the fire code.

---

#### **Article 6 Design Standards › 6. WINDOW & DOOR › c. GENERAL**

7. Openings to basements may not be located within the frontage zone in District D6 Town Center.

### **~~D.D.~~ NONCONFORMING WINDOWS & DOORS**

1. Routine repair, maintenance, and replacement of nonconforming windows and doors is permitted.

---

#### **Article 6 Design Standards › 7. BUILDING ORIENTATION**

### **7. BUILDING ORIENTATION**

#### **~~A.A.~~ PURPOSE**

1. To ensure that buildings address the street in a way that reinforces or creates the desired character in a neighborhood.
2. To provide consistent placement of buildings within neighborhood centers.

#### **~~B.B.~~ APPLICABILITY**

1. Applies to all new primary buildings, accessory buildings, and components in Districts D3, D4, D5, D6, SD Historic, and SD Civic.

### **~~C.C.~~ GENERAL**

1. All primary buildings must front on a primary road, civic space, or waterbody with the exception of residential accessory buildings, and multi-unit residential buildings which may front on alleys.
2. Primary buildings must be oriented parallel to the primary frontage line.

## **ARTICLE 67 USE STANDARDS**

### **1. USE STANDARDS**

#### **~~A.A.~~ PURPOSE**

1. To ensure the health, safety, and the welfare of the people living and working in Newcastle.

---

#### **Article 7 Use Standards › 1. USE STANDARDS › a. PURPOSE**

3. To allow greater flexibility of uses that supports the character of the Town.

#### **~~B.B.~~ APPLICABILITY**

1. All activities and uses associated with buildings and lots.

### **~~C.C.~~ GENERAL**

1. Uses for core districts, special districts, and building groups are permitted according to this Article.

---

#### **Article 7 Use Standards › 1. USE STANDARDS › c. GENERAL**

5. Additional standards for each use are contained within this Article and must be met in order for a use to be permitted and to continue.

#### **~~D.D.~~ USE CATEGORIES**

1. All Uses fall under one of the Categories identified below, as listed under the individual distance standards set forth in Article 2 District Standards.

---

#### **Article 7 Use Standards › 1. USE STANDARDS › d. USE CATEGORIES**

g. Commercial Services

### **E.E. UNLISTED USES**

1. The Code Enforcement Officer must classify uses on the basis of the use category.
2. If a use is not listed but is similar in nature and impact to a use that is listed, the Code Enforcement Officer must issue a written interpretation indicating which use category will be used.

### **F.F. NONCONFORMING USES**

1. Routine repair and maintenance of nonconforming uses is permitted.

---

## **Article 7 Use Standards › 1. USE STANDARDS › f. NONCONFORMING USES**

5. When a structure containing a nonconforming use is damaged or destroyed, the use may be reestablished.

### **G.G. CHANGE OF USE**

1. Any change of use within a building, structure, or unit requires a Change of Use certificate from the Permitting Authority.

### **H.H. NUISANCE STANDARDS**

1. Uses described in this Code may reference "Nuisance Standards", in which case the following standards apply in addition to any standards separately placed on the proposed Use:

---

## **Article 7 Use Standards › 2. EXPANDED USE STANDARDS**

### **2. EXPANDED USE STANDARDS**

#### **A.A. PURPOSE**

1. To allow for special combinations of uses and buildings as accommodated for in Building Groups.
2. To allow for special building arrangements without requiring zoning changes or additional districts.

#### **B.B. APPLICABILITY**

1. Applies to lots, primary buildings, and accessory buildings that intend to take advantage of the unique characteristics conferred by building groups.

#### **C.C. GENERAL**

1. Where designated on a Use Table, in Article 2 District Standards, a required Expanded Use Permit shall be permissible in a Small Rural Compound or a Large Rural Compound Building Group.

---

## **Article 7 Use Standards › 3. ADULT ESTABLISHMENT**

### **3. ADULT ESTABLISHMENT**

#### **A.A. DEFINITION**

A business that sells or disseminates explicit sexual material, and at which access to the public display of explicit sexual material is restricted by law to persons 18 years of age or older.

#### **B.B. STANDARDS**

1. An adult establishment may not be located or operated within: 1,500 feet of a building which is used primarily for religious worship and related religious activities; 1,500 feet of a public or private educational facility, including but not limited to child care facility, nursery schools, preschools, kindergartens, elementary schools, intermediate schools, junior high schools, middle schools, high schools, vocational schools, secondary schools, continuation schools, special education school, junior colleges, and universities; school includes the school ground, but does not include the facilities used primarily for another purpose and only incidentally as a school; 1,500 feet of a public park or recreational area which

has been designated for park or recreational activities including but not limited to a park, playground, nature trails, swimming pool, reservoir, athletic field, basketball or tennis courts, pedestrian/bicycle paths, wilderness areas, or other similar public land within the village which is under the control, operation, or management of the village park and recreation authorities; or 1,500 feet of another adult entertainment establishment.

---

## Article 7 Use Standards › 4. AMUSEMENT, INDOOR

### 4. AMUSEMENT, INDOOR

#### ~~A.~~**A. DEFINITION**

A commercial facility for spectator and participatory uses conducted within an enclosed building, such as movie theaters, sports arenas, bowling alleys, tumbling centers, skating centers, roller rinks, and pool halls.

---

## Article 7 Use Standards › 5. AMUSEMENT, OUTDOOR

### 5. AMUSEMENT, OUTDOOR

#### ~~A.~~**A. DEFINITION**

A commercial facility for spectator and participatory uses conducted outdoors or within partially enclosed structures, such as fairgrounds, campgrounds, batting cages, drive-in movie theater, recreational vehicle parks, petting zoos, golf courses, miniature golf courses, and amusement parks.

#### ~~B.~~**B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article ~~6~~**7** Section 1.G.

### 6. ANIMAL CARE, INDOOR

#### ~~A.~~**A. DEFINITION**

A facility where animals not owned by the proprietor are sheltered and fed, and where all activities are located indoors. Includes veterinarian offices, grooming services, or training services for dogs, cats, and other household pets.

#### ~~B.~~**B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article ~~6~~**7** Section 1.G.

### 7. ANIMAL CARE, OUTDOOR

#### ~~A.~~**A. DEFINITION**

A facility where animals not owned by the proprietor are sheltered and fed. Includes animal rescue shelters, boarding facilities, pet resorts/hotels, or training services for dogs, cats, and other household pets.

#### ~~B.~~**B. STANDARDS**

1. Exterior exercise areas

---

## Article 7 Use Standards › 7. ANIMAL CARE, OUTDOOR › b. STANDARDS

- c. must meet state and federal regulations regarding shelter against weather.
  - d. must provide fencing of adequate height to prevent escape.
2. The proposed Use shall comply with the Nuisance Standards in Article ~~6~~**7** Section 1.G.

## 8. AQUACULTURE

### ~~A.A.~~ DEFINITION

The commercial production of cultured fish, shellfish, seaweed, or other marine plants for human and animal consumption, including all cultivating activities occurring at hatcheries or nurseries, from the egg, larval or spore stages to the transfer of the product to a growing site and all cultivating activities occurring on water, from the receipt of fish, shellfish or other marine plants from onshore facilities to the delivery of harvested products to onshore facilities for processing.

### ~~B.B.~~ STANDARDS

1. All onshore aquaculture facilities must be located within fully enclosed structures designed for holding and rearing fish.

---

## Article 7 Use Standards › 9. ASSEMBLY

## 9. ASSEMBLY

### ~~A.A.~~ DEFINITION

A facility that has organized services, meetings, events, or programs to benefit, educate, entertain, or promote discourse in a public or private setting. Examples include community centers, places of worship, meeting or lecture halls, exhibition rooms, or auditoria.

### ~~B.B.~~ STANDARDS

1. Meeting facilities and places of worship may include functionally related internal facilities such as kitchens, multi-purpose rooms, and offices. Places of worship may establish schools, daycare centers, and on-site social programs such as health care clinics, and food banks.
2. The proposed Use shall comply with the Nuisance Standards in Article 67 Section 1.G.

## 10. BANKING & FINANCIAL SERVICES

### ~~A.A.~~ DEFINITION

Uses related to the exchange, lending, borrowing, and safe-keeping of money.

### ~~B.B.~~ STANDARDS

1. A freestanding Automated Teller Machine is not permitted, unless as part of a bank or financial building that shares the same site. An ATM must be integrated into the building if it is not housed inside the building in a lobby or vestibule.

---

## Article 7 Use Standards › 11. BAR OR TAVERN

## 11. BAR OR TAVERN

### ~~A.A.~~ DEFINITION

A business that serves food and alcoholic beverages for on-premises consumption.

### ~~B.B.~~ STANDARDS

1. A Bar or Tavern may include live entertainment without a separate approval, under the following conditions:

---

## Article 7 Use Standards › 12. BED & BREAKFAST

## 12. BED & BREAKFAST

### ~~A.~~**A. DEFINITION**

When a permanent resident provides rooms within a single unit residential building for temporary, overnight lodging for compensation in guest rooms with no in-room cooking facilities. A bed and breakfast may include dining facilities and meeting rooms.

### ~~B.~~**B. STANDARDS**

1. No more than five guest rooms are permitted.
- 

## Article 7 Use Standards › 13. CAMPGROUND

## 13. CAMPGROUND

### ~~A.~~**A. DEFINITION**

A site where one or more lots are used, or are intended to be used, by campers with tents or recreational vehicles.

### ~~B.~~**B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article 67 Section 1.G.

## 14. CAR WASH

### ~~A.~~**A. DEFINITION**

An establishment for the washing of motor vehicles, which may employ production-line methods, mechanical devices, staffed hand wash facilities, or unstaffed self-wash facilities.

---

## Article 7 Use Standards › 15. COLLEGE/UNIVERSITY

## 15. COLLEGE/UNIVERSITY

### ~~A.~~**A. DEFINITION**

A post-secondary institution for higher learning that grants associate, bachelor, masters, or doctoral degrees, and theological schools.

---

## Article 7 Use Standards › 16. COMMERCIAL AGRICULTURE

## 16. COMMERCIAL AGRICULTURE

### ~~A.~~**A. DEFINITION**

The commercial planting, cultivating, producing, growing, and harvesting of agricultural or horticultural products, the raising of livestock and poultry, and any work performed in conjunction with the above farm operations, including the packing, drying, and storing of products produced on-premises.

### ~~B.~~**B. GENERAL STANDARDS FOR USE.**

1. Private, non-commercial agricultural uses are permitted in every district but may not adversely affect the use and quiet enjoyment of abutting property as a result of noise, vibrations, fumes, odor, dust, glare, or other cause.
- 

## Article 7 Use Standards › 17. COMMERCIAL SCHOOL

## 17. COMMERCIAL SCHOOL

### ~~A.~~**A. DEFINITION**

A school that teaches industrial, clerical, managerial, commercial, artistic, or other select skills; conducts a commercial enterprise, such as a driving school; or a privately operated school that does not offer a complete educational curriculum.

---

## Article 7 Use Standards › 18. CULTURAL FACILITY

## 18. CULTURAL FACILITY

### ~~A.~~**A. DEFINITION**

A facility open to the public for cultural services and exhibitions including, but not limited to, museums, cultural centers, historical societies, and libraries operated by a government or non-profit establishment.

---

## Article 7 Use Standards › 19. DAY CARE CENTER

## 19. DAY CARE CENTER

### ~~A.~~**A. DEFINITION**

A residential companion use that provides licensed care in a protective setting for children or elderly or disabled adults.

### ~~B.~~**B. STANDARDS**

1. Adult day care and child day care facilities must be licensed by and comply with all relevant state requirements.
- 

## Article 7 Use Standards › 20. DAY CARE FACILITY

## 20. DAY CARE FACILITY

### ~~A.~~**A. DEFINITION**

A facility where licensed care, protection, and supervision is provided in a protective setting for children or adults, with or without compensation, on a regular basis away from a primary residence.

### ~~B.~~**B. STANDARDS**

1. Adult day care and child day care facilities must be licensed by and comply with all relevant state requirements.
- 

## Article 7 Use Standards › 21. DISPATCH SERVICE

## 21. DISPATCH SERVICE

### ~~A.~~**A. DEFINITION**

The storage and dispatch of ambulances, taxis, limousines, armored cars, tow trucks, buses, and similar vehicles for specialized transportation, including where ambulance crews not located at a hospital or fire department stand by for emergency calls, ancillary professional offices, and/or minor vehicle service and maintenance repair.

### ~~B.~~**B. STANDARDS**

1. The storage of vehicles must be within a fully-enclosed structure or behind a 25 ft deep Level 2 Natural Screen or a 50% opaque fence.
2. The proposed Use shall comply with the Nuisance Standards in Article ~~6~~**7** Section 1.G.
  - a. Emergency Services are exempt from noise and glare requirements.

## 22. DISTRICT ENERGY SYSTEM

### **A.A. DEFINITION**

A community-based energy system shared by property owners for common use, or managed by a homeowners' association, institution, or similar organization.

### **B.B. STANDARDS FOR USE**

1. In SD-Fab, SD-Historic, D3, D4, D5, and D6 systems must be located on a roof or roofs, not on the ground.
- 

## Article 7 Use Standards › 23. DORMITORY

## 23. DORMITORY

### **A.A. DEFINITION**

Residential housing exclusively occupied by full or part-time students and/or educational staff and owned or operated by an educational institution.

---

## Article 7 Use Standards › 24. DRIVE-THROUGH FACILITY

## 24. DRIVE-THROUGH FACILITY

### **A.A. DEFINITION**

A facility that dispenses goods through an attendant window or automated machine to persons remaining in vehicles in a designated drive aisle.

---

## Article 7 Use Standards › 25. FARM/VENDOR MARKET

## 25. FARM/VENDOR MARKET

### **A.A. DEFINITION**

The direct sales of goods and/or products by multiple farmers or vendors from individual booths, tables, or stands, whether indoors or outdoors.

### **B.B. STANDARDS**

1. Temporary markets may not operate more than three days per week for more than six hours per day.
- 

## Article 7 Use Standards › 26. FARMSTAND

## 26. FARMSTAND

### **A.A. DEFINITION**

The direct sale of produce, grown or processed on the property, located within a permanent or semi-permanent structure also on the property.

---

## Article 7 Use Standards › 27. FOOD PANTRY

## 27. FOOD PANTRY

### **A.A. DEFINITION**

A not-for-profit use that distributes or facilitates the giving of food, clothing, and/or other essential items at no charge or for less than fair market value to persons in need of assistance.

### **B.B. STANDARDS**

1. A food center or supply pantry is allowed within any place of worship or emergency shelter, regardless of district.



---

## Article 7 Use Standards › 28. FUNERAL SERVICES

### 28. FUNERAL SERVICES

#### **A.A. DEFINITION**

A facility where the deceased are prepared for burial display and for rituals before burial or cremation. Such facilities may include chapels and showrooms for the display and sale of caskets, vaults, urns, and other items related to burial services.

#### **B.B. STANDARDS**

1. A crematorium requires a permit for a general industrial use.

---

## Article 7 Use Standards › 29. GAS STATION

### 29. GAS STATION

#### **A.A. DEFINITION**

A facility engaged in the retail sales of personal or commercial vehicle fuels.

#### **B.B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article 67 Section 1.G.

### 30. HEALTH CARE PROVIDER

#### **A.A. DEFINITION**

An office providing outpatient health services involving the diagnosis and treatment of physical or mental ailments and disorders, including doctors, dentists, mental health practitioners, physical therapists, and their substantial equivalents.

---

## Article 7 Use Standards › 31. HEALTH/FITNESS STUDIO

### 31. HEALTH/FITNESS STUDIO

#### **A.A. DEFINITION**

A facility that provides interactive classes, personal or small group instruction, or other activities related to the improvement of the body, mind, and soul.

---

## Article 7 Use Standards › 32. HOSPITAL

### 32. HOSPITAL

#### **A.A. DEFINITION**

A facility that provides health, medical, or surgical care to the sick or injured and contains offices integral to function of the facility.

#### **B.B. STANDARDS**

1. Hospitals often include related ancillary facilities, such as laboratories, outpatient clinics, cafeterias, gift shops, training facilities, classrooms, central service facilities, which require separate use permits.

---

## Article 7 Use Standards › 33. HOTEL & HOSTEL

## 33. HOTEL & HOSTEL

### **A.A. DEFINITION**

A commercial building(s) with guest rooms designed primarily for sleeping, and usually including a lobby, reception area, conference rooms, recreational amenities, and common kitchen cooking facilities providing meals for paying guests in a dining rooms or restaurants.

### **B.B. STANDARDS**

1. Hourly rate lodging is not permitted.
- 

## Article 7 Use Standards › 34. HUMAN SERVICE FACILITY

## 34. HUMAN SERVICE FACILITY

### **A.A. DEFINITION**

An establishment that provides services to persons in need of assistance due to age, physical or mental disability, addiction, illness, or injury, that does not provide residential dwelling units.

### **B.B. STANDARDS**

1. A special permit application for a human services facility must document the community's need for the proposed facility and provide a detailed description of the uses, including an estimation of the number of individuals to be served at the facility over a stated time period, activities and programs anticipate at the facility, hours of operations, degree of supervision at the facility, and any other information as may be reasonably necessary to ascertain the impact of the proposal facility on public safety, health, and welfare.
- 

## Article 7 Use Standards › 35. INDUSTRIAL, ARTISAN

## 35. INDUSTRIAL, ARTISAN

### **A.A. DEFINITION**

A manufacturing use involving small-scale production or assembly with no noxious by-products, and which may include a showroom as well as incidental storage, sales, and distribution of products.

### **B.B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article 67 Section 1.G.
2. Parking lots are not permitted within the frontage zone and must not be visible from any road, excluding alleys.

## 36. INDUSTRIAL, GENERAL

### **A.A. DEFINITION**

Uses that are associated with retail sales, outdoor storage, or light manufacturing of finished or semi-finished products and may include trucking associated with the movement of materials or wholesale distribution.

### **B.B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article 67 Section 1.G.
2. A Level 3 Screen, 25 ft deep, is required along all side and rear lot lines that abut residential uses.

## 37. INDUSTRIAL, HEAVY

### **A.A. DEFINITION**

The processing, manufacturing, compounding, or storage of materials, products, or energy, where the scale and method of operation regularly produce noise, heat, glare, dust, smoke, fumes, odors, vibration, and that

may result in external impacts beyond the lot lines of the property. May regularly employ hazardous material or produce hazardous by-products.

#### **B.B. STANDARDS**

1. A minimum lot size of 10 acres is required.
- 

### **Article 7 Use Standards › 38. JUNK/SALVAGE YARD**

#### **38. JUNK/SALVAGE YARD**

##### **A.A. DEFINITION**

Outdoor establishments primarily engaged in assembling, breaking up, sorting, and the temporary storage and distribution of recyclable or reusable scrap and waste materials, including auto wreckers engaged in dismantling automobiles for scrap, and the incidental wholesale or retail sales of parts from those vehicles. An area or building where waste or scrap materials are bought, sold, exchanged, stored, baled, packed, disassembled, or handled for reclamation, disposal or other like purposes, including but not limited to scrap iron and other metals, paper, rags, rubber tires, and bottles. A junk or salvage yard or building includes an auto wrecking yard or building.

##### **B.B. STANDARDS**

1. Junk/salvage yards must be located at least 500 feet from any abutting residential use.
- 

### **Article 7 Use Standards › 39. LIVE ENTERTAINMENT**

#### **39. LIVE ENTERTAINMENT**

##### **A.A. DEFINITION**

Any activity provided for pleasure, quiet enjoyment, recreation, relaxation, diversion or other similar purpose by a person or persons who are physically present when providing an activity to a patron or group of patrons who are physically present.

##### **B.B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article 67 Section 1.G.
- 

#### **40. MARINA, DRY STORAGE**

##### **A.A. DEFINITION**

A site used for the long-term dry storage of recreational watercraft in racks or other storage systems, and which may include ancillary repair facilities for watercraft.

---

### **Article 7 Use Standards › 41. MARINA, RECREATION**

#### **41. MARINA, RECREATION**

##### **A.A. DEFINITION**

A facility that has frontage on navigable water and allows for the short- or long-term docking and mooring of boats and that may provide supply, repair, and other services.

##### **B.B. STANDARDS**

1. State-level environmental review is required.
- 

### **Article 7 Use Standards › 42. MOBILE HOME PARK**

## 42. MOBILE HOME PARK

### ~~A.~~**A. DEFINITION**

See Mobile Home Parks Ordinance

### ~~B.~~**B. STANDARDS**

See Mobile Home Parks Ordinance

---

## Article 7 Use Standards › 43. OFFICE, LARGE

## 43. OFFICE, LARGE

### ~~A.~~**A. DEFINITION**

A medium office use involves the conduct of business relating to administration, clerical work, and consulting activities, not including medical offices, retail, or service uses. May include single or multiple companies within one unit or building. A large office has no maximum number of workers in a single building and no parking space limitations.

---

## Article 7 Use Standards › 44. OFFICE, MEDIUM

## 44. OFFICE, MEDIUM

### ~~A.~~**A. DEFINITION**

A medium office use involves the conduct of business relating to administration, clerical work, and consulting activities, not including medical offices, retail, or service uses. May include single or multiple companies within one unit or building. A medium office has up to 35 workers in a single building and no parking space limitations.

---

## Article 7 Use Standards › 45. OFFICE, SMALL

## 45. OFFICE, SMALL

### ~~A.~~**A. DEFINITION**

An small office use involves the conduct of business relating to administration, clerical work, and consulting activities, not including medical offices, retail, or service uses. May include single or multiple companies within one unit or building. A small office has up to 5 workers in a single building and 6 parking spaces per lot.

---

## Article 7 Use Standards › 46. OUTDOOR STORAGE

## 46. OUTDOOR STORAGE

### ~~A.~~**A. DEFINITION**

The outdoor keeping of equipment, vehicles, waste, and any materials associated with uses or activities occurring within buildings on the same lot for a period greater than 48 hours.

### ~~B.~~**B. STANDARDS**

1. The storage of refuse, recycling, or other materials is not permitted within the frontage zone.
- 

## Article 7 Use Standards › 47. PACKAGED LIQUOR

## 47. PACKAGED LIQUOR

### ~~A.~~**A. DEFINITION**

Any alcoholic beverage sales establishment involving the sale of alcohol where beer, wine or distilled spirits are sold for off-sale consumption.

---

## Article 7 Use Standards › 48. PARKING LOT

## 48. PARKING LOT

### ~~A.~~**A. DEFINITION**

A non-accessory parking lot made available to the general public in exchange for a fee.

### ~~B.~~**B. STANDARDS**

1. Parking lots must follow the standards for Vehicular Parking in Article ~~3~~**4** Site Standards.

## 49. PRIMARY/SECONDARY SCHOOL

### ~~A.~~**A. DEFINITION**

A public, private, or parochial institution with a primary function of offering instruction at any of all primary or secondary education levels, inclusive of kindergarten through the 12th grade. This use shall not include businesses that offer exclusively recreational classes, such as art classes, musical instruction, or other similar classes open to the general public.

---

## Article 7 Use Standards › 50. PRIVATE CLUB OR LODGE

## 50. PRIVATE CLUB OR LODGE

### ~~A.~~**A. DEFINITION**

A facility operated for an organization, which is open to people upon invitation, nomination, or payment of fees or dues, for social, recreational, and/or entertainment activities.

### ~~B.~~**B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article ~~6~~**7** Section 1.G.

## 51. RECYCLING FACILITY

### ~~A.~~**A. DEFINITION**

A facility that accepts materials, such as dry paper, glass, cans, or plastics, for storage and processing by power-driven equipment for the subsequent reuse in the secondary materials market.

### ~~B.~~**B. STANDARDS**

1. Outdoor storage or operations of the recycling facility may not be located within the frontage zone and must be located behind a 50 ft deep Level 3 Natural Screen, or a 6 ft to 8 ft tall opaque fence. Outdoor storage or operations of any kind are prohibited outside the screened area.
2. Recycling drop-off facilities, manned or unmanned, must be located behind the frontage zone.
3. The proposed Use shall comply with the Nuisance Standards in Article ~~6~~**7** Section 1.G.

## 52. RESEARCH LABORATORY

### ~~A.~~**A. DEFINITION**

A facility for research and development that does not involve the use of human testing, animal husbandry, incinerators, heavy equipment, mass manufacturing, fabrication, processing, or sale of products.

### ~~B.~~**B. STANDARDS**

1. The proposed Use shall comply with the Nuisance Standards in Article ~~6~~**7** Section 1.G.

## 53. RESIDENCE

### **A.A. DEFINITION**

A dwelling unit used, intended, or designed to be rented, leased, let, or hired out to be occupied for living purposes.

### **B.B. STANDARDS**

1. Dwelling units are not permitted in first floor units that front shopfront streets identified on the District Map.

---

## Article 7 Use Standards › 54. RESIDENTIAL CARE FACILITY

## 54. RESIDENTIAL CARE FACILITY

### **A.A. DEFINITION**

A licensed care facility that provides 24-hour medical or non-medical care to persons in need of personal services, supervision, protection, or assistance essential for sustaining the activities of daily living. Residential care facilities include nursing homes, independent living, assisted living, continuum of care, and hospice facilities.

---

## Article 7 Use Standards › 55. RESOURCE EXTRACTION

## 55. RESOURCE EXTRACTION

### **A.A. DEFINITION**

1. Any use that involves the removal of raw materials from the lot, such as soil, rock, timber, or water for commercial activity.

### **B.B. STANDARDS**

1. Ensure compliance with the Shoreland Zoning Ordinance.

---

## Article 7 Use Standards › 56. RESTAURANT & CAFE

## 56. RESTAURANT & CAFE

### **A.A. DEFINITION**

A business where food and beverages are prepared and served to patrons for consumption either on-premises or off-premises.

### **B.B. STANDARDS**

1. The sale of alcohol for on-premises consumption requires separate approval as a Bar or Tavern. Sale of alcohol for off-premises consumption requires separate approval for a Packaged Liquor.

---

## Article 7 Use Standards › 57. RETAIL & SERVICE, GENERAL

## 57. RETAIL & SERVICE, GENERAL

### **A.A. DEFINITION**

A business that provides goods or services directly to the consumer, where such goods or services are available for immediate purchase on the premises by the purchaser.

---

## Article 7 Use Standards › 58. RETAIL & SERVICE, HEAVY

## 58. RETAIL & SERVICE, HEAVY

### **A.A. DEFINITION**

A retail and service business with permanent outdoor display, service, and storage areas, such as vendors of lumber and building supplies, landscaping supplies and equipment, industrial equipment, commercial and recreational vehicles, watercraft, and outdoor structures such as prefabricated sheds, decks and patios, swimming pools, and play equipment.

### **B.B. STANDARDS**

1. A 50 ft deep Level 2 Natural Screen or 6 ft to 8 ft tall opaque fence is required along all side and rear lot lines that abut residential uses.
- 

## Article 7 Use Standards › 59. RETAIL FIREARM SALES FACILITY

## 59. RETAIL FIREARM SALES FACILITY

### **A.A. DEFINITION**

A business which publicly displays or offers Firearms, as defined by the Code of Federal Regulations, Title 27, Chapter I, Subchapter C, §53.11 Meaning of terms, for sale to the public, where such Firearms are available for purchase on the premises. Public display or offer does not include online-only displays or offers.

### **B.B. STANDARDS**

1. A Retail Firearm Sales Facility use, whether primary, accessory, or otherwise, shall not be located on any lot, or virtual lot, that is located completely, or partially, within 300 feet of any lot which contains a Primary/Secondary School use, College/University use, or a Dormitory use associated with a Primary/Secondary School use or College/University use.
- 

## Article 7 Use Standards › 60. ROOMING HOUSE

## 60. ROOMING HOUSE

### **A.A. DEFINITION**

A structure occupied, designed, or intended to be occupied by individuals who may share common areas and facilities, but do not form a single household, and do not provide compensation under a single lease for occupancy. A rooming unit provides sleeping accommodations, but no in-room cooking facilities.

### **B.B. STANDARDS**

1. One on-site supervisor is required at all times for any rooming house with ten or more rooming units.
- 

## Article 7 Use Standards › 61. SELF-STORAGE FACILITY

## 61. SELF-STORAGE FACILITY

### **A.A. DEFINITION**

A facility where individual secured areas inside a structure are rented for short-term storage of a variety of non-hazardous, non-perishable durable goods and where the lessee has direct access and responsibility for loading and unloading the storage.

### **B.B. STANDARDS**

1. The individual storage units of a self-storage facility may be located in a fully-enclosed building, with access to individual storage units provided from common areas located indoors.
- 

## Article 7 Use Standards › 62. STABLES / RIDING CENTER

## 62. STABLES / RIDING CENTER

### ~~A.~~**A. DEFINITION**

A structure or land used, designed, and arranged for the care and shelter of equines, for riding, shows, or training, which may include horses not boarded on-site.

### ~~B.~~**B. STANDARDS**

1. A fence is required around all paddock areas.
- 

## Article 7 Use Standards › 63. TOURIST RENTAL

## 63. TOURIST RENTAL

### ~~A.~~**A. DEFINITION**

The rental of a dwelling unit, or a portion of a dwelling unit, on an overnight or short-term basis for less than 30 days at a time.

### ~~B.~~**B. STANDARDS**

1. Tourist rentals require an annual license from the Code Enforcement Officer and may be approved or denied based on enforcement history at the location, whether or not the rental is unduly taxing public infrastructure, public services, has demonstrated a hazard to public safety, or otherwise disturbs the peace of neighbors and the community.
- 

## Article 7 Use Standards › 64. UTILITIES & SERVICES

## 64. UTILITIES & SERVICES

### ~~A.~~**A. DEFINITION**

1. Buildings and structures that provide or facilitate the transmission of services consumed by the public including electricity, Internet, natural gas, water, and sewage.

### ~~B.~~**B. STANDARDS**

1. Standards related to wind energy facilitates are located in the Wind Energy Ordinance.
- 

## Article 7 Use Standards › 64. UTILITIES & SERVICES › b. STANDARDS

- b. Louvered or paneled shutters covering the panel in a "closed" position.
  - c. A trellis, grille, grate, or fretwork.
4. The proposed Use shall comply with the Nuisance Standards in Article 67 Section 1.G.

## 65. VEHICLE RENTAL OR SALES

### ~~A.~~**A. DEFINITION**

A business that sells, leases, or rents automobiles, vans, three-wheelers, motorcycles, scooters, or other powered personal transportation or conveyance, and which may include on-site facilities for the repair and service of vehicles sold, leased, or rented. This does not include the sale, lease, or rental of recreational vehicles, commercial vehicles, or watercraft, which is considered a heavy retail and service use.

### ~~B.~~**B. STANDARDS**

1. The display of vehicles for rental or sale shall not occur within the frontage zone.
- 

## Article 7 Use Standards › 66. VEHICLE REPAIR



## 66. VEHICLE REPAIR

### ~~A.~~**A. DEFINITION**

A business that repairs, installs, or maintains automobiles, small trucks or vans, motorcycles, motor homes, or recreational vehicles or that wash, clean, or otherwise protect the exterior or interior surfaces of these types of vehicles.

### ~~B.~~**B. STANDARDS**

1. Any repair and service operations must be performed within a fully enclosed building. Garage doors may be open during hours of operation.

---

#### Article 7 Use Standards › 66. VEHICLE REPAIR › b. STANDARDS

3. Temporary storage of vehicles may not be located within the frontage zone and must be located behind a 25 ft Level 2 Natural Screen or a 6ft to 8 ft tall opaque fence.
4. Outdoor storage or operations of any kind are prohibited in the frontage zone.
5. The proposed Use shall comply with the Nuisance Standards in Article 67 Section 1.G.

## ARTICLE 78 ADMINISTRATION

### 1. CORE CODE ADMINISTRATION

#### ~~A.~~**A. PURPOSE**

1. To describe the powers and duties of the review bodies and ordinance administrator, and the different kinds of applications required to be submitted to the Town prior to subdivision of land or construction of buildings or site improvements.

---

#### Article 8 Administration › 1. CORE CODE ADMINISTRATION › a. PURPOSE

3. To describe procedures for seeking zoning relief, appeals, and for seeking District Map or text amendments.

#### ~~B.~~**B. APPLICABILITY**

1. Applies to all projects within the Town of Newcastle.

---

#### Article 8 Administration › 2. GENERAL PROCEDURES

### 2. GENERAL PROCEDURES

#### ~~A.~~**A. GENERAL**

1. Applications must be approved by the Permitting Authority, following the procedures outlined in this Code.

---

#### Article 8 Administration › 2. GENERAL PROCEDURES › a. GENERAL

4. When a project requires multiple types of permit review, those applications may, at the discretion of the Permitting Authority, be processed simultaneously.

#### ~~B.~~**B. COMPLETENESS**

1. An application for development review is not considered complete until all necessary information has been supplied by the applicant, all fees have been paid, required pre-submittal meetings have been held, and until such time as the Permitting Authority determines completeness.

---

#### Article 8 Administration › 2. GENERAL PROCEDURES › b. COMPLETENESS

- a. Determine the application is complete and ready for review.
- b. Determine the application is incomplete and deny the application.
- c. ~~Determine the application is incomplete and allow the applicant to withdraw the application without prejudice according to Article 7.A.9.B Withdrawal.~~
- d. ~~Table the application to a date and time specific according to Article 7.A.7.C. Continuance.~~
- c. `#text(fill: rgb("#cc0000"))[Determine the application is incomplete and allow the applicant to withdraw the application without prejudice according to Article 8.A.9.B Withdrawal.]`{=typst}
- d. `#text(fill: rgb("#cc0000"))[Table the application to a date and time specific according to Article 8.A.7.C. Continuance.]`{=typst}

### **~~G.C.~~ FEES**

1. Upon formal submission of an application, any applicable fees must be paid in accordance with the fee schedule established by the Board of Selectmen and posted at the Town Office.

### **~~D.D.~~ TECHNICAL REVIEW**

1. Where a Permitting Authority finds that the scale or complexity of a project necessitates third party professional or technical services to assist with project review and determination of compliance with this Code and any modules, the applicant may be required to escrow funds prior to the commencement of project review.
2. Funds will be held by the Town Treasurer and any balance of funds remaining at the conclusion of project review will be returned to the applicant.
3. In the instance where an applicant disagrees with the amount of funds to be escrowed, an applicant may appeal a decision of the Permitting Authority in accordance with Article 7.F.18.F.1 Administrative Appeals.

### **~~E.E.~~ RECORDING**

1. Plans containing lots, virtual lot lines, or building groups must be recorded in the Lincoln County Registry of Deeds within 90 days of the granting of an approval, variance, or a permit.

---

## **Article 8 Administration › 3. PRE-SUBMITTAL MEETING**

### **3. PRE-SUBMITTAL MEETING**

#### **~~A.A.~~ PURPOSE**

1. To provide an opportunity to inform an applicant of relevant development review application criteria, standards, and procedure.

---

#### **Article 8 Administration › 3. PRE-SUBMITTAL MEETING › a. PURPOSE**

3. To identify potential concerns by the applicant and the Permitting Authority at the earliest opportunity in the development process.

#### **~~B.B.~~ APPLICABILITY**

1. At the discretion of the Code Enforcement Officer, an applicant may be required to have a pre-submittal meeting with the Permitting Authority. Conversely, an applicant may request a pre-submittal meeting with the Permitting Authority.

---

#### **Article 8 Administration › 3. PRE-SUBMITTAL MEETING › b. APPLICABILITY**

5. Pre-submittal meetings are advisory only, and not intended as an exhaustive review of all potential issues. Participation in a pre-submittal meeting does not absolve an applicant of any responsibility for legal or technical due diligence investigation.

### **~~G.C.~~ PROCEDURE**

1. A pre-submittal meeting with the Code Enforcement Officer should occur at least 3 days prior to formal submission of an application for development review.

---

## Article 8 Administration › 4. OPTIONAL NEIGHBORHOOD MEETING

### 4. OPTIONAL NEIGHBORHOOD MEETING

#### ~~A.~~**A. PURPOSE**

1. To facilitate appropriate community participation in the development review process; to provide an applicant with an opportunity to present a development proposal to the public during the conceptual design phase; and to allow the public to identify and discuss issues and potential impacts of the development proposal with the applicant.
2. To promote submittal of applications for development review that are more responsive to neighborhood concerns and to expedite and lessen the expense of the review process by reducing continuances and appeals.

#### ~~B.~~**B. APPLICABILITY**

1. Neighborhood meetings are optional.

#### ~~C.~~**C. PROCEDURE**

1. A neighborhood meeting should occur at least 10 days before formal submittal of an application for development review.

---

## Article 8 Administration › 5. PUBLIC NOTICE

### 5. PUBLIC NOTICE

#### ~~A.~~**A. PURPOSE**

1. To inform the general public of the public hearing or meeting and to inform neighboring landowners of any potential development impacts.

#### ~~B.~~**B. APPLICABILITY**

1. All projects.

#### ~~C.~~**C. MAILED NOTICE**

1. Refer to Table 7-18.1 Notices & Public Hearings.
2. Notice of a development review or legislative procedure public hearing must be mailed by USPS Return Receipt to abutters located:
  - a. Within 1,000 feet of the subject property, if the property is in D1.

---

## Article 8 Administration › 5. PUBLIC NOTICE › c. MAILED NOTICE

4. Applicant must provide copy of mailing receipt to the Office of the Code Enforcement Officer.

#### ~~D.~~**D. PUBLISHED NOTICE**

1. When published notice is required, notice of a development review or legislative procedure public hearing must be published on the Town of Newcastle's web page and in a newspaper of general circulation.

#### ~~E.~~**E. POSTED NOTICE**

1. When posted notice is required, the Code Enforcement Officer must post notice of a development review or legislative procedure public hearing in a conspicuous public location at the Town of Newcastle Office.
2. The posted notice must include a description of application type and brief summary as well as contact information for the Town of Newcastle.

#### ~~F.~~**F. NOTICE DEFECTS**

1. Minor defects in notice do not impair the notice or invalidate proceedings if a bona fide attempt has been made to comply with applicable notice requirements.

## Article 8 Administration › 6. PUBLIC HEARINGS

### 6. PUBLIC HEARINGS

#### ~~A.~~**A. PURPOSE**

1. To provide an opportunity for the public to review and comment on project applications, revisions, appeals, and/or proposed zoning text or map amendments.

#### ~~B.~~**B. APPLICABILITY**

1. Refer to Table 7-18.1 Notice & Public Hearing. Application types that are not listed, do not require a Public Hearing.

#### ~~C.~~**C. ACCESS TO DOCUMENTS**

1. Physical copies of application information, plans, and other related correspondence are available to inspect during normal Town of Newcastle office business hours. Copies of materials may be requested by any party, subject to payment of a reasonable fee to cover the cost of such copies.

#### ~~D.~~**D. CONDUCT OF THE PUBLIC HEARING**

1. The public hearing will be conducted in accordance with any and all applicable requirements of this Code and any adopted rules and regulations of the Permitting Authority conducting the hearing.

#### ~~E.~~**E. CONTINUANCE**

1. Upon mutual agreement by the applicant and the Permitting Authority, the following procedural requirements may be extended:

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## Article 8 Administration › 6. PUBLIC HEARINGS › e. CONTINUANCE

2. Time limit extensions shall be recorded in writing.

### TABLE 7-18.1 NOTICES & PUBLIC HEARINGS

● = Required; ◐ = May be required

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## Article 8 Administration › 7. WRITTEN INTERPRETATION

### 7. WRITTEN INTERPRETATION

#### ~~A.~~**A. PURPOSE**

1. To provide a formal explanation or clarification of the regulations of this Code as applied to specific cases.

#### ~~B.~~**B. APPLICABILITY**

1. A written interpretation may be requested by any party.
2. The Code Enforcement Officer may issue a written interpretation of any specific standards(s) of this Code as applied to any specific property or development proposal under development review at their own initiative, without petition from the public.

#### ~~C.~~**C. GENERAL**

1. The Code Enforcement Officer may issue written interpretations.

---

## Article 8 Administration › 7. WRITTEN INTERPRETATION › c. GENERAL

3. Written interpretations must be consistent with the purpose and purpose of this Code and cannot contradict or override any standards of this or any other Ordinance.

#### ~~D.~~**D. PROCEDURE**

1. Within 30 days after receiving a petition for a written interpretation, the Code Enforcement Officer must:

## Article 8 Administration › 8. MISC PROCEDURES

### 8. MISC PROCEDURES

#### ~~A.~~**A. INSPECTION**

1. Submittal of an application provides consent, by the applicant, for the Code Enforcement Officer to enter upon private real property to conduct routine inspections as needed.

#### ~~B.~~**B. WITHDRAWAL**

1. An application may be withdrawn without prejudice at any time prior to the issuance of the public notice advertising the development review public hearing where the application will be reviewed.
- 

## Article 8 Administration › 8. MISC PROCEDURES › b. WITHDRAWAL

c. Withdrawn applications are not eligible for a refund of fees, unless explicitly authorized by the Town Administrator.

#### ~~C.~~**C. REPETITIVE APPLICATIONS**

1. A denied application will not be reconsidered for a minimum of 2 years from the date that final action was taken by the Permitting Authority unless the Permitting Authority determines that substantial new evidence is available, or a significant mistake of law or of fact was made in the prior denial, that justifies reconsideration of the application.
- 

## Article 8 Administration › 8. MISC PROCEDURES › c. REPETITIVE APPLICATIONS

3. Re-submittal of applications withdrawn without prejudice must not be considered a repetitive application.

#### ~~D.~~**D. FAILURE TO ACT**

1. Failure by a Permitting Authority to hold a public hearing or take final action on an application within the maximum time requirement or permitted extensions, as applicable, must result in the approval of the application at the expiration of said time periods.

#### ~~E.~~**E. FINDINGS**

1. Decisions must include a detailed record of proceedings indicating the vote of each member, the reason for its decisions, its official actions and any conditions of approval.

#### ~~F.~~**F. CERTIFICATION & RECORDING OF DECISION**

1. Filing of the Decision. Decisions will be filed by the Permitting Authority as indicated for each type of development review with the Town Clerk within five business days after the decision is made. The Town Clerk will date stamp the decision, beginning the time period for which an appeal may be filed.
- 

## Article 8 Administration › 9. APPLICATION TYPES

### 9. APPLICATION TYPES

#### ~~A.~~**A. PURPOSE**

1. To provide a clear and effective set of rules for gaining approvals for development within the Town of Newcastle.

#### ~~B.~~**B. APPLICABILITY**

1. All projects.

#### ~~C.~~**C. DEVELOPMENT REVIEW**

1. Applications are required for the following types of projects:
-

## Article 8 Administration › 9. APPLICATION TYPES › c. DEVELOPMENT REVIEW

j. Variance

### ~~B.D.~~ ADDITIONAL PERMIT APPLICATIONS

1. Additional permit applications may be required based on conditions of subject property and/or the proposed project, including:

---

## Article 8 Administration › 10. SMALL PROJECT PLAN

### 10. SMALL PROJECT PLAN

#### ~~A.A.~~ PURPOSE

1. To provide for the administrative review of projects including the development of individual buildings, modifications to buildings, changes or alterations made to a site, or other projects that do not create significant off-site impacts, according to the applicability standards below.

#### ~~B.B.~~ APPLICABILITY

1. All new buildings and accessory buildings up to 10,000 sf in gross floor area.

---

## Article 8 Administration › 10. SMALL PROJECT PLAN › b. APPLICABILITY

5. Changes to a nonconforming lot, use, structure, site improvement, if the subject property is up to 10 acres in lot area.

#### ~~G.C.~~ AUTHORITY

1. The Code Enforcement Officer administratively reviews applications for all Small Project Plan applications.

---

## Article 8 Administration › 10. SMALL PROJECT PLAN › c. AUTHORITY

3. The Code Enforcement Officer may, upon consideration of the complexity of the application, forward the application to the Planning Board for review and approval at a public hearing.

#### ~~D.D.~~ PROCEDURE

1. A Small Project Plan application must be filed, including payment of the applicable fee, with the Office of the Code Enforcement Officer, in accordance with Article 7.2 General Procedures.
2. The Code Enforcement Officer shall forward permit applications for Life Safety review, in accordance with Article 7.29 Life Safety.
3. A Small Project Plan application must be filed, including payment of the applicable fee, with the Office of the Code Enforcement Officer, in accordance with Article 8.2 General Procedures.
4. The Code Enforcement Officer shall forward permit applications for Life Safety review, in accordance with Article 8.29 Life Safety.
5. Applications may be subject to additional State or Municipal permit review.
  - a. Zoning Permits for Small Project Plans will not be issued for applications that require any additional development review until that review has been completed.

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## Article 8 Administration › 10. SMALL PROJECT PLAN › d. PROCEDURE

4. Within 10 days after receiving a completed application for a Small Project Plan that does not require any further type of development review, the Code Enforcement Officer must issue a Zoning Permit or transmit in writing to the Applicant the reasons for failure to issue such permit.

#### ~~E.E.~~ APPROVAL STANDARDS

1. The Code Enforcement Officer must approve a Small Project Plan application and issue findings of fact upon verifying consistency to the following:

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## Article 8 Administration › 10. SMALL PROJECT PLAN › e. APPROVAL STANDARDS

e. Considerations indicated elsewhere in this Code for the required Small Project Plan approval.

### **F.F. CONDITIONS**

1. The Code Enforcement Officer may grant Small Project Plan approval with conditions only to the extent that conditions specify the actions necessary to bring the application into complete compliance with applicable standards of this Code or where additional conditions have been agreed to by the applicant.

### **G.G. AMENDMENTS**

1. Amendments to approved Small Project Plan applications may be approved as follows:
- 

## Article 8 Administration › 11. LARGE PROJECT PLAN

### 11. LARGE PROJECT PLAN

#### **A.A. PURPOSE**

1. To provide for the review of projects including the development of individual buildings, modifications to buildings, changes or alterations made to a site, or other projects that may have the potential to create significant off-site impacts, according to the applicability standards below.
2. The Large Project Plan approval process provides an applicant with the opportunity to submit architectural, site, landscaping, or engineering plans so that compliance to the standards of this Code can be determined.

#### **B.B. APPLICABILITY**

1. Projects that create significant on- or off-site impact.
- 

## Article 8 Administration › 11. LARGE PROJECT PLAN › b. APPLICABILITY

6. Building groups that do not trigger subdivision.

#### **G.C. AUTHORITY**

1. The Code Enforcement Officer reviews and approves applications that require Large Project Plan approval.
- 

## Article 8 Administration › 11. LARGE PROJECT PLAN › c. AUTHORITY

3. The Code Enforcement Officer may, upon consideration of the complexity of the application, forward the application to the Planning Board for review and approval at a public hearing.

#### **D.D. PROCEDURE**

1. A Large Project Plan application must be filed, including payment of the applicable fee, with the Office of the Code Enforcement Officer, in accordance with Article 7.A.1 General Procedures.
2. The Code Enforcement Officer shall forward permit applications for Life Safety review, in accordance with Article 7.29 Life Safety.
3. A Large Project Plan application must be filed, including payment of the applicable fee, with the Office of the Code Enforcement Officer, in accordance with Article 8.A.1 General Procedures.
4. The Code Enforcement Officer shall forward permit applications for Life Safety review, in accordance with Article 8.29 Life Safety.
5. Within 45 days after receiving a completed application for a Large Project Plan that does not require any further type of development review, the Code Enforcement Officer must issue a Zoning Permit or transmit in writing to the Applicant the reasons for failure to issue such permit.
6. If the Code Enforcement Officer forwards the application to the Planning Board, the Planning Board will proceed as follows:

---

## Article 8 Administration › 11. LARGE PROJECT PLAN › d. PROCEDURE

5. Zoning permits for large project plans will not be issued for applications that require any additional development review until that review has been completed in accordance with the standards of this Article.

### **E.E. APPROVAL STANDARDS**

1. The Code Enforcement Officer must approve a Large Project Plan application and issue findings of fact upon verifying consistency to the following:

---

## Article 8 Administration › 11. LARGE PROJECT PLAN › e. APPROVAL STANDARDS

- e. Considerations indicated elsewhere in this Code for the required Large Project Plan approval.

### **F.F. CONDITIONS**

1. The Code Enforcement Officer may grant Large Project Plan approval with conditions only to the extent that conditions specify the actions necessary to bring the application into complete compliance with applicable standards of this Code or where additional conditions have been agreed to by the applicant.

### **G.G. AMENDMENTS**

1. Amendments to approved Large Project Plan applications may be approved as follows:

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## Article 8 Administration › 11. LARGE PROJECT PLAN › g. AMENDMENTS

- c. Within 30 days of submission, the Code Enforcement Officer must issue revised findings and issue a Zoning Permit or transmit in writing the reasons for failure to issue such permit.

### **H.H. COMPLIANCE**

1. The Code Enforcement Officer may require the posting of a bond or other performance guarantee to assure compliance with the Large Project Plan and/or conditions, as approved.

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## Article 8 Administration › 12. SUBDIVISION

## 12. SUBDIVISION

### **A.A. PURPOSE**

1. To allow for the orderly development of a parcel of land into new dwelling units and lots, and roads that provide access to them.
2. To comply with MRSA, Title 30-A, Chapter 187, Section 4401 et seq.

### **B.B. APPLICABILITY**

1. The division of a parcel of land into 3 or more lots within any 5 year period that begins on or after September 23, 1971.

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## Article 8 Administration › 12. SUBDIVISION › b. APPLICABILITY

6. Installation of utility services.

### **G.C. AUTHORITY**

1. Application for Subdivision must comply with all other standards in this code.

---

## Article 8 Administration › 12. SUBDIVISION › c. AUTHORITY

7. Upon approval of a Subdivision Plan, the Office of the Code Enforcement Officer may accept applications for development, including but not limited to Small and Large Project Plans for new buildings.



#### **D.D. PHASING**

1. The Planning Board may permit a subdivision to be completed in phases. The Planning Board may include any requirements or conditions on such phasing plan it deems necessary to ensure orderly development.

#### **E.E. PROCEDURE**

1. The review and approval of an application for Subdivision Plan approval is conducted at a public hearing of the Planning Board.

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### **Article 8 Administration › 12. SUBDIVISION › e. PROCEDURE**

7. The applicant must submit 3 mylar copies of the final plat plan for Planning Board signatures.

#### **F.F. APPROVAL STANDARDS**

1. The Planning Board must approve a Subdivision Plan application and issue findings of fact upon verifying consistency to the following:
  - a. The standards of this Code.
  - b. The ~~Newcastle standards~~ Road, of Driveway, Article and 3 Entrance Streets, Ordinance. Roads & Driveways.
  - c. Pollution: The proposed subdivision will not result in undue water or air pollution. In making this determination, it will at least consider:
    - i. The elevation of the land above sea level and its relation to the flood plains;

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### **Article 8 Administration › 12. SUBDIVISION › f. APPROVAL STANDARDS**

u. Lands Subject to Liquidation Harvesting: Timber on the parcel being subdivided has not been harvested in violation of rules adopted pursuant to Title 12, Section 8869, subsection 14. If a violation of rules adopted by the Maine Forest Service to substantially eliminate liquidation harvesting has occurred, the Planning Board must determine prior to granting approval for the subdivision that 5 years have elapsed from the date the landowner under whose ownership the harvest occurred acquired the parcel.

#### **G.G. CONDITIONS**

1. The Planning Board may attach conditions and/or limitations that it deems necessary in order to ensure compliance to the findings and/or standards applicable to development requiring Subdivision Plan approval.

#### **H.H. AMENDMENTS AND MODIFICATION**

1. The Code Enforcement Officer may determine that the following modifications to an approved plat are de minimis in nature, and do not constitute an amendment to the approved final plat:
  - a. Moving of lot lines and rearrangement of easements, provided that the lots meet the minimum requirements of this Code and all other applicable regulations, and the number of lots remains the same; and,
  - b. Modification of design of improvements as result of unforeseen conditions or field adjustments during construction, as recommended by the Road Commissioner.
2. All other modifications to an approved plat will constitute a new application to the Planning Board, subject to the procedures of Article ~~7.B.4.C~~ 8.B.4.C Procedure.
3. Where a revision causes need for a new plan mylar to be signed by the Planning Board for recording at the Lincoln County Registry of Deeds, the Planning Board must make itself available as a board or as individuals to sign mylars in a timely manner. After obtaining necessary signatures, the applicant must file the signed mylar with the Lincoln County Registry of Deeds in accordance with the standards of this Code.

#### **~~I~~. COMPLIANCE**

1. The Planning Board may require the posting of a security agreement (performance bond, irrevocable letter of credit or other performance guarantee), plus inspection fees made payable to the Treasurer of the Town of Newcastle to assure compliance with the Subdivision plan and/or conditions, as approved, within 2 years from the date of approval of the final plat.
2. The Planning Board may recommend to the Board of Selectmen an extension of the performance guarantee period up to twelve months where the applicant can demonstrate good cause for extension.

#### **~~J~~. RECORDING OF PLAT**

1. The applicant will file a copy of the approved subdivision plat at the Lincoln County Registry of Deeds within 6 months of approval by the Planning Board.

#### **~~K~~. MONUMENTS**

1. Following final plat approval, survey monuments and markers must be laid out as indicated in the final plat as follows:

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#### **Article 8 Administration › 12. SUBDIVISION › k. MONUMENTS**

- d. The Road Commissioner may modify or exempt the installation of monuments based on the nature of the proposed subdivision.

#### **~~L~~. REQUIRED IMPROVEMENTS**

1. Installation of Improvements must be made in accordance with the final plat, within 2 years from the date of approval of the final plat. Improvements may include, but are not limited to: site grading, streets (including any street trees, sidewalks, curb and gutter), sanitary sewers, water mains and services, stormwater management facilities, fire services, street lighting, and signage.
2. Prior to start of construction of any required improvements, the applicant must provide the Road Commissioner with a copy of specifications included in any contract entered into by the applicant for construction. The applicant must notify the Town at least five days prior to the start of construction or installation of any improvements and at least 24 hours prior to the completion of these improvements.

#### **~~M~~. INSPECTION OF IMPROVEMENTS**

1. The construction of all required improvements must be supervised by a Maine State licensed engineer, contracted by the Town of Newcastle at the expense of the applicant. After completion of construction, the supervising engineer must certify to the Road Commissioner that all required improvements have been constructed as required.

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#### **Article 8 Administration › 12. SUBDIVISION › m. INSPECTION OF IMPROVEMENTS**

3. If the Road Commissioner finds, upon inspection, that any of the required improvements have not been constructed per the approved plans and specifications, he/she must instruct the applicant to correct any discrepancies or deficiencies.

#### **~~N~~. CONVEYANCE OF IMPROVEMENTS**

1. If any plat contains public rights-of-way, parks, or easements which are to be dedicated as such, the approval of the plat does not constitute an acceptance by the Town of Newcastle of the improvements constructed or installed in the subdivision, irrespective of any acts by an officer, agent, or employee of the Town of Newcastle with respect to these improvements.

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#### **Article 8 Administration › 12. SUBDIVISION › n. CONVEYANCE OF IMPROVEMENTS**

3. The acceptance of improvements may be made only by the adoption of a Board of Selectmen resolution after the Department of Public Works files a certificate with the Office of the Code Enforcement Officer

certifying that all improvements have been constructed or installed as required. All accepted easements must be filed with the plat and copies forwarded to the Commissioner of Public Works, Parks, and Streets.

#### **~~Q.~~O. DEFAULT OF SECURITY AGREEMENT**

1. If any required improvements have not been installed as provided in this section within the terms of the security agreement, the Board of Selectmen may declare the security agreement to be in default and collect the sum remaining payable thereunder; and upon receipt of the proceeds, the Town of Newcastle must install the improvements as covered by the security, and as commensurate with the extent of building development that has taken place in the subdivision but not exceeding in cost the amount of such proceeds.

#### **~~P.~~P. MODIFICATION OF SECURITY**

1. The Road Commissioner may decide at any time during the term of the security agreement the following:

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#### **Article 8 Administration › 12. SUBDIVISION › p. MODIFICATION OF SECURITY**

- b. That the required improvements have been installed in accordance with the approved final plat in sufficient amount to warrant reduction in the amount of security agreement.

#### **~~Q.~~O. ISSUANCE OF ZONING PERMITS FOR NEW BUILDINGS**

1. No Zoning Permit will be issued for a new building until the final plat is recorded with the Lincoln County Registry of Deeds, and a copy provided to the Office of the Code Enforcement Officer.

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#### **Article 8 Administration › 13. MASTER PLAN**

### **13. MASTER PLAN**

#### **~~A.~~A. PURPOSE**

1. To provide a development review process that applies to a conceptual plan coordinating the development of blocks, roads, civic space, and other neighborhood level design.
2. To show mandatory compliance standards for blocks, ~~shopfront~~ **Street** streets, ~~and roads,~~ **Road Types and cross-section configurations per Article 3,** district mix, and building mix, as applicable.
3. To allow an applicant to gain conceptual-level approval for a project without preparing detailed site plans or architectural and engineering drawings for roads, civic spaces, lots, or buildings.
4. To authorize the Code Enforcement Office to accept applications for subsequent development review in accordance with this Code, as project phases and individual lots are built out.

#### **~~B.~~B. APPLICABILITY**

1. Parcels under single ownership that involve the potential for significant or phased development.
2. Any proposed reassignment of districts to land on the District Map.

#### **~~C.~~C. AUTHORITY**

1. The Planning Board reviews and approves all applications for master plan approval.

#### **~~D.~~D. PROCEDURE**

1. The review and approval of an application for Master Plan application is conducted at a public hearing.
2. Within 30 days of receiving an application for Master Plan approval, the Planning Board must review the application for completeness and hold a public hearing.
3. The Planning Board shall forward Master Plan applications for Life Safety review, in accordance with Article 7-29**8.29** Life Safety.
4. Within 30 days of the closing of the public hearing, the Planning Board must make a decision to approve, approve with conditions, deny, or grant withdrawal of the application.
5. When considering a revision to a previously approved application for Master Plan approval, the Planning Board must limit its review to the proposed changes to the previously approved application.

6. Plans for project phases under a Master Plan may be submitted as Large Project Plans, Small Project plans, or Subdivision Plans, as appropriate.
7. For Master Plans that involve realignment of districts, see Article 78 Section C.2 Zoning Amendment.

#### **~~E~~.E. APPROVAL STANDARDS**

1. The Planning Board must approve a Master Plan application and issue findings of fact upon verifying consistency to the following:

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#### **Article 8 Administration › 13. MASTER PLAN › e. APPROVAL STANDARDS**

- c. The adopted Comprehensive Plan of the Town of Newcastle.
- d. Considerations indicated elsewhere in this Code for the required Master Plan approval.
2. At Master Plan approval, the Type and cross-section configuration of each Street and Road within the plan are fixed and govern subsequent project phases. A later phase may propose a different Type or cross-section configuration only by a revision of the Master Plan under Section 14.

#### **~~F~~.F. COMPLIANCE**

1. The Planning Board may require the posting of a bond or other performance guarantee to assure compliance with the Master Plan and/or conditions, as approved.

#### **~~G~~.G. CONDITIONS**

1. The Planning Board may attach conditions and/or limitations that it deems necessary in order to ensure compliance to the standards applicable to development requiring Master Plan approval.

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#### **Article 8 Administration › 14. PLAN REVISION**

### **14. PLAN REVISION**

#### **~~A~~.A. PURPOSE**

1. To request to make changes to a previously approved application for development review.

#### **~~B~~.B. APPLICABILITY**

1. Plan amendments that are not de minimis in nature are subject to review by the Code Enforcement Officer.

#### **~~C~~.C. AUTHORITY**

1. The Code Enforcement Officer must determine whether a plan revision is de minimis in nature and thereupon review said revision administratively or determine if the Permitting Authority should review the petition based on the nature of the request and initial plan approval.
2. In accordance with Article 7.B.4.F 8.B.4.F Amendments and Modifications, the Code Enforcement Officer may determine whether a Subdivision Plan revision is de minimis or requires action by the Planning Board.

#### **~~D~~.D. PROCEDURES**

1. Within 14 days after receiving a completed application for a plan revision, the Code Enforcement Officer must review the application and determine if the proposed revision is de minimis or significant enough to be considered a major amendment to the plan.

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#### **Article 8 Administration › 15. USE PERMIT**

### **15. USE PERMIT**

#### **~~A~~.A. PURPOSE**

1. To authorize a Use on a parcel of land, in a building or group of buildings, in accordance with the list of permissible Uses located in the Use Table for each District.

### **~~B.~~B. APPLICABILITY**

1. Applies to all applications seeking to engage in a new Use or a change of Use on a parcel of land, in a building, or group of buildings.

### **~~C.~~C. AUTHORITY**

1. The permitting authority for Use Permits are designated on each District page.

### **~~D.~~D. PROCEEDURE**

1. Within 30 days of receiving a completed application for a Use Permit, the designated permitting authority shall review the application and approve, approve with modifications, deny, or grant withdrawal of the application and file the decision with the Town Clerk.

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## **Article 8 Administration › 16. EXPANDED USE PERMIT**

### **16. EXPANDED USE PERMIT**

#### **~~A.~~A. PURPOSE**

1. To authorize a Use in a lower density District under circumstances that would otherwise only be permittable in a District with higher density.

#### **~~B.~~B. APPLICABILITY**

1. Applies to all applications seeking to engage in a new Expanded Use or a change of Use either to or from an Expanded Use.

#### **~~C.~~C. GENERAL**

1. Expanded Use Permit Authority and Proceedure follow those of Article 78 Section 15.C and 15.D respectively.

### **17. RESIDENTIAL COMPANION USE PERMIT**

#### **~~A.~~A. PURPOSE**

1. To authorize a Use on a parcel of land, in a building or group of buildings in accordance with the list of permittable Uses located in the Use Table for each District, and which Use is symbiotic with a dwelling use.

#### **~~B.~~B. APPLICABILITY**

1. Applies to all applications seeking to engage in a new Residential Companion Use or a change of Use either to or from a Residential Companion Use.

#### **~~C.~~C. GENERAL**

1. Residential Companion Use Permit Authority and Proceedure follow those of Article 78 Section 15.C and 15.D respectively.

### **18. SPECIAL PERMIT**

#### **~~A.~~A. PURPOSE**

1. To authorize a predetermined type of exception from the standards of this Code, within specific limitations and subject to performance measures.

#### **~~B.~~B. APPLICABILITY**

1. Special permits may only be requested as specifically authorized by this Code.

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## **Article 8 Administration › 18. SPECIAL PERMIT › b. APPLICABILITY**

3. The approval or denial of an application for a special permit is in the reasonable discretion of the Planning Board.

### **C.C. AUTHORITY**

1. The Planning Board reviews and decides all applications that require a Special Permit.
2. The granting of a special permit authorizes the Code Enforcement Officer to issue a Zoning Permit.

### **D.D. PROCEDURE**

1. Within 30 days after receiving a completed application for development review that requires a special permit, the Planning Board must review the application and hold a public hearing.

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## **Article 8 Administration › 18. SPECIAL PERMIT › d. PROCEDURE**

3. When considering a revision to a previously approved application for a special permit, the Planning Board must limit its review to the proposed changes to the previously approved application.

### **E.E. APPROVAL STANDARDS**

1. When determining whether to approve or deny an application, the Planning Board must consider the following:

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## **Article 8 Administration › 18. SPECIAL PERMIT › e. APPROVAL STANDARDS**

- g. Considerations indicated elsewhere in this Code for special permit approval.

### **F.F. CONDITIONS**

1. In granting a special permit, the Planning Board may attach conditions and/or limitations that it deems necessary in order to ensure compliance to the findings and/or standards for the specific special permit requested. Such conditions may include, but are not limited to, buffers, screening, limits on location, scale, intensity, design, lighting, signs and hours of operation.
2. Failure to comply with any condition or restriction constitutes a violation of this Code and, in addition to any civil or criminal remedy or enforcement procedure, is grounds for modification, suspension, or revocation of the special permit.

### **G.G. VALIDITY**

1. Special permit approvals must be acted upon within 2 years from the date the decision is filed with the Town Clerk, excluding any time required awaiting the decision of an appeal. If a special permit is not acted upon with 2 years, the approval expires.

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## **Article 8 Administration › 19. VARIANCE**

## **19. VARIANCE**

### **A.A. PURPOSE**

1. To allow a deviation from certain dimensional standards in this Code only when strict application of the Ordinance to the applicant or applicant's property would cause undue hardship.

### **B.B. APPLICABILITY**

1. In accordance with Title 30-A SS.4353(4), an Undue Hardship Variance may not be granted for uses.

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## **Article 8 Administration › 19. VARIANCE › b. APPLICABILITY**

3. In accordance with Title 30-A SS.4353.4-a Disability Variance, a variance may be granted for the installation of equipment or construction of structures necessary for access to or egress from a dwelling by a person with a disability, or the construction of non-commercial vehicle storage.

### **A.A. GENERAL**

1. No Zoning Permit may be issued for development that requests a variance until the review process for a variance has been completed in accordance with the standards of this Article.

#### **B.B. AUTHORITY**

1. The Board of Appeals reviews and decides all applications for a zoning variance.

#### **C.C. PROCEDURE**

1. Within 30 days after receiving a completed application for a Zoning Permit that requires a variance, the Board of Appeals must review the application and hold a public hearing.
- 

### **Article 8 Administration › 19. VARIANCE › c. PROCEDURE**

3. Within 90 days of issuance of a certificate, the applicant must file a copy of the decision with the Lincoln County Registry of Deeds.

#### **D.D. APPROVAL STANDARDS**

1. The granting of a variance is based upon demonstrated need, not convenience, and when no other feasible alternative is available.
- 

### **Article 8 Administration › 19. VARIANCE › d. APPROVAL STANDARDS**

g. Desirable relief could be granted without causing substantial detriment to the public good and without nullifying or substantially derogating from the purpose and purpose of a specific district in this Code or the Ordinance in general.

#### **E.E. CONDITIONS**

1. The Board of Appeals may attach conditions and/or limitations it deems necessary in order to ensure compliance to the findings and/or standards for the specific variance requested.
2. Failure to comply with any condition or restriction constitutes a violation of this Code and, in addition to any civil or criminal remedy or enforcement procedure, is grounds for modification, suspension, or revocation of the variance.

#### **F.F. DURATION AND EXTENSION**

1. Projects benefiting from a variance must be completed within two years of the granting of the variance.
- 

### **Article 8 Administration › 20. LAND CONVEYANCE**

## **20. LAND CONVEYANCE**

#### **A.A. PURPOSE**

1. To request the Town to accept a voluntary offering of a building, road, property easement, or civic space for public dedication.

#### **B.B. APPLICABILITY**

1. Any project that contains a building, road, property easement, or civic space.

#### **C.C. AUTHORITY**

1. The Board of Selectmen review all land conveyance petitions on behalf of the Town. The Board of Selectmen may elect to place a land conveyance petition on the warrant of an Annual or Special Town Meeting, where by acceptance would be determined by a majority vote at Town Meeting.
2. The approval or denial of a land conveyance petition is a discretionary legislative act, subject to a majority vote of the Board of Selectmen.

#### **D.D. PROCEDURE**

1. Within 60 days after receiving a land conveyance petition, the Board of Selectmen must review the petition at a regular scheduled meeting, and take action to accept the conveyance, deny the conveyance, or place it on the warrant of the next occurring Town Meeting.
- 

### **Article 8 Administration › 20. LAND CONVEYANCE › d. PROCEDURE**

4. A majority vote of the Board of Selectmen is required to accept a voluntary offering of land for public dedication.

#### **E.E. RECOMMENDATION**

1. In developing its recommendation to the Board of Selectmen, the Code Enforcement Officer or Planning Board may consider the following:
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### **Article 8 Administration › 20. LAND CONVEYANCE › e. RECOMMENDATION**

- c. Any demonstrated public interest in ownership and the assumption of maintenance responsibility for the land in question.

#### **F.F. CONDITIONS**

1. The Code Enforcement Officer or Planning Board may make recommendations to the Board of Selectmen when it deems that accepting a petition to convey land to the Town of Newcastle is within the public interest.
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### **Article 8 Administration › 21. ZONING AMENDMENT**

## **21. ZONING AMENDMENT**

#### **A.A. PURPOSE**

1. To provide an applicant a way to change zoning regulations in response to changes in Newcastle policy or factors or conditions that may be affecting real property.

#### **B.B. APPLICABILITY**

1. Any project within the Town of Newcastle.

#### **C.C. AUTHORITY**

1. The Board of Selectmen process all requests for zoning text or map amendments and place requests for amendments on the Annual or Special Town Meeting.
2. The approval or denial of a zoning text or map amendment is a discretionary legislative act, by majority vote at an Annual or Special Town Meeting.

#### **D.D. PROCEDURE**

1. Petitions may be submitted by any of the following:
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### **Article 8 Administration › 23. ADMINISTRATIVE APPEAL**

## **23. ADMINISTRATIVE APPEAL**

#### **A.A. PURPOSE**

1. To provide an applicant a way to petition the Town to rectify a failure to act, denial of a permit, decision made, or enforcement action taken by the Code Enforcement Officer or Planning Board when an alleged error or misinterpretation has been made in the enforcement or application of the standards of this Code.

#### **B.B. APPLICABILITY**

1. Any aggrieved party may appeal an interpretation, order, requirement, direction, or failure to act by a Code Enforcement Officer within 30 days of such action or failure to act.
- 

### **Article 8 Administration › 23. ADMINISTRATIVE APPEAL › b. APPLICABILITY**

3. An appeal of written interpretations, development plans, special permits, plan revisions constitute an administrative appeal.



### **~~C.~~C. AUTHORITY**

1. The Board of Appeals holds a “de novo” hearing to review and decide appeals of decisions of the Code Enforcement Officer as applicable in this Code.
2. The Board of Appeals holds an appellate hearing to review and decides appeals of decisions of the Planning Board as applicable in this Code.

### **~~D.~~D. PROCEDURE**

1. Within 30 days of an action or failure to act, any aggrieved party may file an appeal with the Appellate Authority.

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## **Article 8 Administration › 23. ADMINISTRATIVE APPEAL › d. PROCEDURE**

3. Within 45 days after the closing of the public hearing, the Appellate Authority must make a decision to uphold or reverse the decision of the Code Enforcement Officer, and file said decision with the Town Clerk.

### **~~E.~~E. RECONSIDERATION**

1. In accordance with MRSA Title 30 Section 2691, an applicant may file a request to the Board of Appeals to reconsider its decision within 10 days of the decision.

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## **Article 8 Administration › 24. JUDICIAL APPEAL**

## **24. JUDICIAL APPEAL**

### **~~A.~~A. PURPOSE**

1. To provide an applicant a way to petition the Town to rectify the failure to act, denial of a permit, decision made, or enforcement action taken by a Code Enforcement Officer or the Planning Board when an alleged error or misinterpretation has been made in the enforcement or application of the standards of this Code.

### **~~B.~~B. APPLICABILITY**

1. Any aggrieved party may appeal a decision or action of the Board of Appeals to the Maine Superior Court.
2. An appeal of a Variance constitutes a judicial appeal.

### **~~C.~~C. PROCEDURE**

1. An aggrieved party may file an appeal at the Maine Superior Court pursuant to the Maine Rules of Civil Procedure.

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## **Article 8 Administration › 25. NONCONFORMITY**

## **25. NONCONFORMITY**

### **~~A.~~A. PURPOSE**

1. To provide for the continuation of uses, structures, building lots, site characteristics, or signs that were established prior to the adoption of this Code and were made nonconforming in result of the adoption of this Code.
2. To provide clear and fair rules for when nonconforming conditions should come into conformance with the standards contained within this Code.

### **~~B.~~B. APPLICABILITY**

1. All building lots, uses, buildings, components, roofs, site characteristics, signs, roads or other items that were established prior to the adoption of this Code.

### **~~E.~~C. CONTINUATION**

1. Nonconforming conditions may continue to operate until such a time as the owner of the property, building, or features makes an alteration that requires conformity, as described in related sections of this Code.

### **~~D.~~D. PROOF OF NONCONFORMING CONDITIONS**

1. The applicant has the burden of establishing the existence of a nonconforming condition that was in effect prior to the adoption of this Code.
2. When applying for any permit or approval related to a nonconforming condition, the applicant may be required to submit evidence of a prior permit or other documentation showing that the nonconformity existed prior to the adoption of this Code.

### **~~E.~~E. DETERMINATIONS**

1. The Code Enforcement Officer will determine all questions as to whether a nonconforming condition exists, and prepare a written interpretation in accordance with Article 7-A.68.A.6 Written Interpretation.
2. The written interpretation must assign a building type, components, roof type, and any other features to the nonconforming building, to set the baseline for modifications that can be legally made to the nonconforming building.

### **~~F.~~F. RESTORATION OF NONCONFORMING CONDITIONS**

- a. A Zoning Permit is required for the rebuilding, restoration, repair, or reconstruction of a nonconforming condition within one year of the date of damage or destruction.

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## **Article 8 Administration › 26. CODE ENFORCEMENT OFFICER**

### **26. CODE ENFORCEMENT OFFICER**

#### **~~A.~~A. RESPONSIBILITIES**

1. The Code Enforcement Officer is appointed by the Board of Selectmen.

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#### **Article 8 Administration › 26. CODE ENFORCEMENT OFFICER › a. RESPONSIBILITIES**

9. The Code Enforcement Officer, from time to time, provides written reports and recommendations to other Permitting Authorities and to the Board of Selectmen.

#### **~~B.~~B. ENFORCEMENT ACTIONS**

1. The Code Enforcement Officer must not issue any written interpretation or Zoning Permit in violation of this Code.

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#### **Article 8 Administration › 26. CODE ENFORCEMENT OFFICER › b. ENFORCEMENT ACTIONS**

4. Nothing in this Code will restrict the Town from seeking immediate equitable relief for a violation of this Code from a court of competent jurisdiction without prior notice.

#### **~~G.~~C. FINES AND PENALTIES**

1. Any person who violates the standards of this Code will be fined in accordance to a schedule of fines established by the Board of Selectmen and posted in the Town Office or pursuant to the terms of Title 30-A Section 4452.

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## **Article 8 Administration › 27. PLANNING BOARD**

## 27. PLANNING BOARD

### ~~A.~~**A. RESPONSIBILITIES**

1. The Planning Board must consist of a minimum 5 members, all legal residents of the Town of Newcastle, appointed by the Board of Selectmen to serve staggered terms of 3 years.
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#### Article 8 Administration › 27. PLANNING BOARD › a. RESPONSIBILITIES

7. The Planning Board, or its designee, drafts the official map of the Town of Newcastle.

### ~~B.~~**B. BOARD RULES**

1. The Planning Board may adopt rules of procedure and policy as it may deem necessary to conduct its affairs, including but not limited to the following subjects:
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#### Article 8 Administration › 28. BOARD OF APPEALS

## 28. BOARD OF APPEALS

### ~~A.~~**A. RESPONSIBILITIES**

1. The Board of Appeals will consist of 5 members, all legal residents of the Town of Newcastle, appointed by the Board of Selectmen to serve staggering terms of 3 years.
- 

#### Article 8 Administration › 28. BOARD OF APPEALS › a. RESPONSIBILITIES

- c. Administrative Appeals of decisions of the Code Enforcement Officer and the Planning Board for waivers of standards as explicitly permitted by this Code.

### ~~B.~~**B. BOARD RULES**

1. The Board of Appeals may adopt rules of procedure and policy as it may deem necessary to conduct its affairs, including but not limited to the following subjects:
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#### Article 8 Administration › 29. LIFE SAFETY

## 29. LIFE SAFETY

### ~~A.~~**A. PURPOSE**

1. To provide for Life Safety review of projects including the development of individual buildings or groups of buildings, modifications to buildings, or changes or alterations made to a site where Life Safety considerations and standards apply.

### ~~B.~~**B. APPLICABILITY**

1. Life Safety review shall be applicable as follows:
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#### Article 8 Administration › 29. LIFE SAFETY › b. APPLICABILITY

- d. All Master Plan permit applications.

### ~~C.~~**C. AUTHORITY**

1. The Newcastle Board of Selectmen shall appoint a Life Safety Officer, or the Newcastle Fire Chief as the Life Safety Officer, for the purposes of Life Safety review in compliance with this Code, the NFPA 101 Life Safety Code, and other applicable Municipal, State, or Federal laws or standards.

### ~~D.~~**D. PROCEEDURE**

1. The Code Enforcement Officer shall forward applicable permit applications to the Life Safety Officer for review, and;
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## Article 8 Administration › 29. LIFE SAFETY › d. PROCEEDURE

2. The Life Safety Officer shall reference the NFPA 101 Life Safety Code, and other applicable Municipal State or Federal laws and standards, in reviewing permit applications, and where appropriate provide references to specific standards when providing a written report to the Code Enforcement Officer.

## ARTICLE 89 DEFINITIONS

### Abandoned:

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### Article 9 Definitions

**Auto-Oriented:** Businesses that relate to vehicular sales and service. All auto-oriented uses, definitions, and standards may be found in Article 47 Use Standards.

### Average Ground Level:

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### Article 9 Definitions

**Civic Use:** Activities, uses, purposes, and organizations which are dedicated to arts, culture, education, religion, recreation, government, transit, municipal parking, gardening, horticulture, public gathering, assembly, or meeting. All civic and institutional uses must serve and be open to the public and operate as a non-profit or otherwise be tax exempt. All civic and institutional uses, definitions, and standards may be found in Article 47 Use Standards.

### Clear Height:

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### Article 9 Definitions

**Industrial:** The processing or manufacturing of materials, and activities associated with this work. All industrial uses, definitions, and standards may be found in Article 47 Use Standards.

### Insular Lot:

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### Article 9 Definitions

**Lodging:** Premises available for daily and weekly renting of bedrooms. All lodging uses, definitions, and standards may be found in Article 47 Use Standards.

### Lot:

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### Article 9 Definitions

**Natural Resources:** The processing or manufacturing of materials, and activities associated with this work. All natural resources uses, definitions, and standards may be found in Article 67 Use Standards.

### Nonconformity:

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### Article 9 Definitions

**Non-dwelling Unit:** A single, internally connected space that comprises a building or a part of a building that can be occupied by any one of the use categories included in Article 67 Use Standards, except for those under the category of Residential.

**Office:** The transaction of general business, including administrative, professional, and clerical activities, but excluding retail. All office uses, definitions, and standards may be found in Article 47 Use Standards.

### On-Site Civic Space:

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## Article 9 Definitions

**Residential:** Use characterizing premises available for long-term human dwelling. All residential uses, definitions, and standards may be found in Article 47 Use Standards.

**Residential Accessory Building:**

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## Article 9 Definitions

**Retail:** Use characterizing premises available for the sale of merchandise and food service. All retail uses, definitions, and standards may be found in Article 47 Use Standards.

**Retaining Wall:**

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## Article 9 Definitions

In determining the Secondary Road for Corner lots, Through lots, or any lot that abuts more than one road, the secondary road or roads are the roads determined not to be the primary road.

**Road, Private** See Newcastle Road Ordinance. **Road, Private:** A road in fully private ownership over which no public access right exists; an Ownership Category under Article 3 Section 4.C. Independent of the road's Street/Road Type. Maintenance is the responsibility of the private owner or association.

**Road, Public** See Newcastle Road Ordinance. **Road, Public:** Legacy term superseded by the Ownership Categories in Article 3 Section 4.C. Where the term appears in this Code without further qualification, it shall be construed to include both Town Way (formally accepted under 23 MRSA §3022) and Public Easement (under 23 MRSA §3021). See also **Town Way** and **Public Easement**.

**Roof Line:**

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## Article 9 Definitions

**Service:** Service uses include any enterprise that provides work performed in an expert manner by an individual or team for the benefit of its customers. The typical service business provides intangible products. Auto-oriented service uses are listed under a separate use category. All service uses, definitions, and standards may be found in Article 67 Use Standards.

**Setback:**

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## Article 9 Definitions

**Unit:** A single, internally connected space that comprises a building or a part of a building that can be occupied by any one of the use categories included in Article 47 Use Standards. (See Dwelling Unit and Non-dwelling Unit).

**Unit Floor Area:**

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## Article 9 Definitions

An approval that certifies that a project complies with all applicable municipal ordinances.

## DEFINITIONS ADDED FOR ARTICLE 3 STREETS, ROADS & DRIVEWAYS

The following definitions are added in connection with the adoption of Article 3. At the next consolidation of this Article, they will be merged alphabetically with the entries above.

**Alley (S5):** A Street Type for narrow service streets internal to a block, providing access to the side or rear of lots for parking, loading, accessory buildings, and utility easements; buildings do not front on an Alley. Formerly combined with the Lane as Type "S4 Lane/Alley"; the two are now distinct Types (Lane = S4, fronting; Alley = S5, service). Defined in Article 3 Section 2 (Type S5).

**Build-To Standard:** The value stated in the “Build to” column on a Type’s page in Article 3 Section 2 — the configuration the applicant is to construct for that Type. It is drawn from the Type’s authorized range under Article 3 Section 3.C.2 (the fuller value for the pedestrian and landscape components, the lower value for the traffic-calming dimensions). A Build-To Standard is distinguished from a minimum, which is the floor below which a waiver is required: an applicant may build less than a Build-To Standard by the written demonstration of Article 3 Section 3.C.4, whereas building below a stated minimum requires a waiver under Article 3 Section 13.H.

**Cartway:** The portion of a Street or Road’s right-of-way that is paved, graveled, or otherwise improved for vehicular travel, including travel lanes, on-street parking lanes (where present), and shoulders (where present). The cartway does not include sidewalks, planting strips, or the frontage zone.

**Connector Road (R1):** A Road Type providing connections in the rural-to-urban transition zone, with shoulders rather than curbs, no continuous sidewalks, and a design speed higher than any Street Type. Defined in Article 3 Section 2 (Type R1).

**Curb Return Radius:** The radius of the curve at the corner of two intersecting Streets or Roads, measured along the outside face of the curb or, where no curb is present, along the edge of the cartway. Calibrated by Type pair under Article 3 Section 9.

**Driveway** (*modified entry — supersedes prior definition above*): A private vehicular access way from a Street or Road (per Article 3 Section 2) to the interior of a single lot, including access to homes, parking lots, or loading docks. A Driveway is not a Street or Road and is not subject to the construction specifications of Article 3 Section 11. See Article 3 Section 7 for full Driveway standards. Where this Code uses the prior definition of “Driveway” (a vehicular access way serving two single family dwellings or one two-family dwelling or less), the prior definition is superseded; use limits, if any, are set within Article 3 Section 7.

**Highway Commercial (R4):** A Road Type for auto-oriented commercial corridors with access management, sidewalks where feasible, and MaineDOT-coordinated cartway geometry. Defined in Article 3 Section 2 (Type R4).

**Lane (S4):** A Street Type for narrow, low-speed fronting streets internal to a neighborhood or village block, carrying two narrow travel lanes that operate in a yield fashion, with a sidewalk on one side or none. A Lane provides frontage and may connect to other Street Types or “punch in” to open the interior of a block; it is larger than an Alley (S5). Defined in Article 3 Section 2 (Type S4).

**Main Street (S1):** The most urban Street Type, providing the central organizing thoroughfare of the Town Center with continuous building streetwalls, active ground-floor uses, wide sidewalks, on-street parking both sides, and the lowest design speed in the typology. Defined in Article 3 Section 2 (Type S1).

**Neighborhood Street (S3):** A Street Type providing connections within and between residential and small-business neighborhoods, with a sidewalk on at least one side, a planting strip, on-street parking permitted, and a residential-scale design speed. Defined in Article 3 Section 2 (Type S3).

**On-Street Parking Lane:** A lane within the cartway, adjacent to the travel lanes, reserved for the parking of vehicles parallel or at an angle to the curb or edge of pavement. Where provided, an on-street parking lane is typically 7–8 ft wide per side and is counted separately from the traveled way (moving lanes) on each Type’s page in Article 3 Section 2.

**Ownership Category:** The statutory ownership and maintenance classification of a Street or Road under Article 3 Section 4, independent of its Street/Road Type. The four Ownership Categories are Town Way, Public Easement, Private Road, and State Highway.

**Planting Strip:** The portion of a Street or Road’s right-of-way located between the curb (or edge of cartway, where no curb is present) and the sidewalk (where present), or between the curb and the front lot line where no sidewalk is present. The planting strip typically contains street trees, grass, low plantings, and tree pits; it may also contain on-street furniture in the furnishing zone.

**Provision Component:** A Street element — a sidewalk, planting strip, street trees, or on-street parking — whose presence on a given segment is governed by the context triggers of Article 3 Section 3.F rather than by a fixed dimension stated for the Type.

**Public Easement:** A right of public access over a road or way, held by the municipality under 23 MRSA §3021. The road or way is open to public traffic, but the Town does not bear maintenance responsibility. Formerly referred to in some Maine usage as a “private way.” An Ownership Category under Article 3 Section 4.C.

**Rural Highway (R5):** A Road Type for high-speed regional corridors through rural and conservation contexts, with deep front setbacks, vegetative screening, and MaineDOT-controlled cartway geometry. Defined in Article 3 Section 2 (Type R5).

**Rural Lane (R3):** A Road Type for low-volume rural yield roadways providing access to a small number of lots, working landscapes, or back land, with a single shared travel surface (or two very narrow lanes) on which opposing vehicles yield, a gravel or paved surface, and open-ditch drainage. The rural counterpart to the Lane (S4); generally carries fewer than 400 vehicles per day. Provides a conforming designation for existing narrow rural ways, including historic two-rod (33 ft) rights-of-way. Defined in Article 3 Section 2 (Type R3).

**Rural Road (R2):** A rural Road Type providing access to working landscapes — farmland, forest, conservation lands — with the narrowest standard pavement, no curbs, and drainage by open ditches. Defined in Article 3 Section 2 (Type R2).

**State Highway:** A street or road owned and maintained by the State of Maine through the Maine Department of Transportation. US Route 1 within Newcastle is a State Highway. An Ownership Category under Article 3 Section 4.C. Subject to the coordination protocol in Article 3 Section 12.

**Street:** A thoroughfare classified under the Street family of Types (S1 Main Street, S2 Village Street, S3 Neighborhood Street, S4 Lane, S5 Alley) under Article 3 Section 2. Distinct from a Road in that pedestrian comfort is generally a primary design consideration.

**Street/Road Type:** The form-based classification assigned to a Street or Road under Article 3 Section 2, describing its character, dimensions, and design standards. Distinct from the Street or Road’s Ownership Category.

**Thoroughfare:** An umbrella term for any Street, Road, or Driveway. Includes all ten Street/Road Types (S1 through S5 and R1 through R5) plus the Driveway category.

**Town Way:** A road or way formally accepted by the Town under 23 MRSA §3022 by vote at Town Meeting. The Town owns and maintains a Town Way. An Ownership Category under Article 3 Section 4.C.

**Travel Lane:** A portion of the cartway designated for the through movement of vehicular traffic in a single direction; does not include on-street parking lanes or shoulders.

**Village Street (S2):** A Street Type providing mixed-use frontages in village centers, with sidewalks both sides, optional on-street parking, and a design speed appropriate to pedestrian-prioritized neighborhood streets. Defined in Article 3 Section 2 (Type S2).